

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

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vs.

Top Shipping Systems, Corp.

(Respondent)

COMPLAINANT’S COMBINED MOTION FOR LEAVE TO EXCEED PAGE LIMIT; MOTION FOR RECONSIDERATION OF THE JULY 27, 2026 ORDER; AND, IN THE ALTERNATIVE, MOTION FOR LEAVE TO FILE AN INTERLOCUTORY APPEAL AND INTERLOCUTORY APPEAL PURSUANT TO 46 C.F.R. § 502.221

MOTION FOR LEAVE TO EXCEED PAGE LIMIT

Complainant requests leave under 46 C.F.R. § 502.71(d) to file this fifty-five-page combined motion. The July 27 Order denied enforcement of discovery that was litigated, compelled on April 1, expressly ordered again as to all third-party communications on June 5, and then developed through the additional depositions the Presiding Officer directed Complainant to take. A complete reconsideration motion and the appeal required to accompany a Rule 221 motion must quote and address the April 1, May 21, June 5, and July 27 Orders; the June 4 status-conference record; the Villena Declaration; the representation history; and the Del Monte and Sarmiento depositions. Additionally, this motion contains blocks of text that are spaced out for readability. One complete filing is more efficient than separate, repetitive motions.

INTRODUCTION

The basic fact has been buried under months of procedure: the Commission ordered the documents, and TSS did not produce them.

The April 1 Order granted the Motion to Compel as to RFP Nos. 4 and 7 after Respondent, represented by Daniel W. Raab, P.A., litigated its scope and relevance objections. The Order called those objections “off-mark,” held that “almost any communication between Respondent and any third party is potentially relevant,” and ordered supplemental production. (April 1 Order, at 11, 14). Spector Rubin, P.A. then entered as Respondent’s second law firm, stated that it understood the Order to require the gathering, review, and production of all shipment records, and obtained extra time to make Respondent’s production and declaration “complete, accurate, and compliant” with the Order. (Respondent’s Motion for Extension of Time, at 1-2 (Apr. 10, 2026)).

The May 21 Order did not find compliance. It identified the exact defect Complainant continued to raise: only two third-party email addresses had been searched although several third parties were involved. The Presiding Officer called that “a good question,” stated that Respondent “all but admits that its document searches to date have been deficient,” and expressed concern that Respondent might be engaging in “gamesmanship” through changes in representation. (May 21 Order, at 7-8). Enforcement was denied without prejudice because the conferral record was unclear, not because TSS had complied.

At the June 4 status conference¹, the Presiding Officer independently recognized that the production did not make sense. He stated that an international container shipment normally generates “100 emails” and many parties, identified at least eight known third parties missing from the production, and asked TSS: “Why is that?” TSS did not identify the documents. It explained that it had treated communications copied to FormuKleen as outside the request, although RFP No. 4 required communications with third parties whether or not FormuKleen was copied. TSS then admitted that it handled “the trucking and the warehouse.” (June 4 Recording at 27:17-29:07). TSS’s answer did not rebut noncompliance. It explained it.

The Presiding Officer also accepted that Magaya could be organized however TSS chose; recognized that TSS, not Complainant, would know the correct way to search it; stated that the phrase “targeted searches means nothing to me” without the details; and directed Complainant to take depositions so it could build a “really clear record” for renewed enforcement and possible sanctions. He ended the conference by confirming that the deposition would give Complainant a “completely clear record” and that the Commission would then “go from there.” (Id. at 17:35-19:11, 32:00-34:42, 39:41-45:55, 57:19-57:34). The June 5 Order then stated: “Respondent is still required to produce all third-party communications related to the two subject shipments,” held the renewed enforcement motion in abeyance, and authorized Complainant to amend it with the additional discovery. (June 5 Order, at 2).

Complainant followed those instructions. It spent additional time and resources taking the sworn testimony the Presiding Officer said was needed. That testimony identified specific communications, delivery orders, amended delivery orders, transmitting emails, Magaya records, trucker records, terminal records, payment records, custodians, and search failures. The July 27 Order nevertheless denied enforcement without finding that TSS obeyed the April 1 or June 5 command. It instead relied on an asserted misunderstanding, an incomplete quotation, a reversed chronology, a search term absent from the Declaration, and a prediction that evidence the Commission had already ordered might not materially advance the case.

The record now supplies multiple independent grounds for relief. First, the July 27 Order never found compliance with either operative production command. Second, Respondent’s verified pleading and its own custodian establish that specific third-party communications existed, remain accessible, and were never produced. Third, the Order’s factual premises, including the truncated “everything was reviewed” quotation and the supposed Qichen search, are contradicted by the record. Fourth, the Order revisited materiality after discoverability had already been decided and did so while materially misquoting the governing statute by replacing “point of receipt” with “point of origin.” The same passage also materially truncated the Complaint’s allegation that Respondent was engaged as an Ocean Transportation Intermediary, the statutory category that includes NVOCC status. The Order also supplied material search rationales that Respondent never advanced and summarily denied Complainant’s fully briefed request under 46 C.F.R. § 502.150(b)(1) without reasoned analysis. Each of those errors independently warrants reconsideration; together they require enforcement before merits briefing proceeds.

That is the error this motion presents. The issue is not whether TSS tried, whether TSS misunderstood, whether a witness disliked the word “search,” or whether the Presiding Officer believes

¹The June 4, 2026 status conference was recorded by the Commission, but no official paginated reporter’s transcript was issued. Citations are to recording timestamps reflected in the platform-generated automated transcript. Complainant corrected obvious automated-transcription artifacts against the recording; the recording and original automated transcript remain available to the Commission and Respondent for comparison.

Complainant may already have enough evidence. The issue is whether TSS produced what the Commission ordered. It did not. The July 27 Order should be reconsidered. If it is not, immediate Commission review is necessary before the merits are decided on the incomplete record created by TSS's noncompliance.

Pursuant to 46 C.F.R. § 502.71(a), Complainant conferred with Respondent regarding this motion by email, requesting that Respondent state whether it was opposed or unopposed to these combined motions. Respondent did not respond. Complainant therefore understands this motion to be opposed. Pursuant to 46 C.F.R. § 502.150(b), Complainant further certifies that it conferred in good faith and repeatedly attempted to confer with Respondent in an effort to obtain compliance with the compelled discovery without the necessity of further motion practice, as documented in the written conferrals described in Section 4.B and in Complainant's May 31 and July 15 enforcement motions, but those efforts did not obtain compliance.

The relief requested under 46 C.F.R. § 502.150(b) is not a new discovery demand. It was expressly requested in Complainant's May 31 and July 15 enforcement motions after the extensive written compliance conferral set out in those filings; Respondent opposed that relief on the merits; and the July 27 Order denied it without analysis. This motion seeks reconsideration and reasoned disposition of that already-presented request.

1. STANDARD

The Commission's Rules do not specifically prescribe a procedure for reconsideration of an interlocutory ruling by a presiding officer. Commission precedent nevertheless establishes that "[a] presiding officer may properly reconsider and reverse interlocutory rulings made prior to the initial decision." *Tractors and Farm Equipment, Ltd. v. Waterman Steamship Corp.*, 21 S.R.R. 1293, 1295 n.9 (FMC 1982). Applying that precedent, the Presiding Officer concluded that "it is consistent with sound administrative practice to follow Civil Rule 54(b) in Commission proceedings" and that "[a] presiding officer has discretion to entertain a motion for reconsideration of an interlocutory order." *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, Docket No. 09-01, Memorandum and Order on Motions for Reconsideration, Leave to Appeal Order Denying Motions to Dismiss, and Stay Pending Appeal, at 5–6 (FMC ALJ Aug. 13, 2010). That standard considers, among other circumstances, whether the tribunal misunderstood the parties, decided matters beyond the issues presented, failed to consider controlling decisions or data, or whether denial of reconsideration would cause tangible harm or injustice. *Id.* at 6.

This motion presents independently sufficient grounds of newly available evidence, clear factual and legal error, and manifest injustice. It is being filed within the fifteen-day period prescribed by 46 C.F.R. § 502.221(b) for seeking interlocutory review of the July 27 Order. It does not seek to revive an issue after judgment or reopen discovery based on evidence that was previously available to Complainant. It seeks prompt reconsideration of an enforcement ruling based on certified corporate testimony obtained after the enforcement briefing, errors apparent from the existing record, and the continuing deprivation of evidence that Respondent was ordered, but has still failed, to produce.

The certified Villena transcript supplies one newly available evidentiary ground. The transcript was unavailable when briefing on the renewed motion to enforce closed and was received only after entry of the July 27 Order. It directly contradicts factual premises on which the Order relied concerning who conducted the searches, how those searches were performed, and whether Respondent's document-production representations could establish compliance. The testimony is not cumulative of the existing

record: it supplies Respondent's subsequent certified corporate testimony concerning the very searches the Order accepted as sufficient.

More fundamentally, however, the evidentiary deprivation requiring reconsideration is not confined to the Villena transcript. Complainant remains without the evidence required by two still-operative discovery Orders. The April 1 Order compelled Respondent to produce documents responsive to RFP Nos. 4 and 7. The June 5 Order confirmed that Respondent remained required to produce all third-party communications concerning the two subject shipments and directed Respondent to cure its redacted production. Respondent has not produced the complete third-party communications, the complete payment and charge records responsive to RFP No. 7, or the other records encompassed by those Orders. Those records remain within Respondent's possession and control.

Complainant therefore faces merits briefing without evidence the Presiding Officer twice determined it was entitled to receive. Complainant cannot produce Respondent's withheld communications and internal records as proof of their own nonproduction, identify every participant or record omitted from Respondent's undisclosed search universe, or establish the precise contents and evidentiary consequences of documents that Respondent has refused to produce. Those records are unavailable because Respondent has not complied with two Orders, not because Complainant failed to request them, pursue them, or timely develop its case.

The July 27 Order then relied upon the resulting evidentiary uncertainty to deny enforcement, reasoning that it was unclear what additional documents might exist and unclear whether they would materially advance Complainant's case. But those uncertainties are the direct consequence of the nonproduction the motion sought to remedy. Permitting Respondent to rely upon uncertainty created by its own failure to produce, while requiring Complainant to brief the merits without the ordered evidence, converts noncompliance into an evidentiary advantage. It also leaves the April 1 and June 5 Orders formally intact while depriving them of practical effect. Requiring merits briefing on that record would cause manifest injustice independently warranting reconsideration.

The July 27 Order also rests on multiple clear errors apparent from the existing record. It denied enforcement without determining whether Respondent complied with either the April 1 or June 5 Order; supplied semantic, Qichen-redundancy, and search-completeness rationales Respondent never advanced and denied enforcement on grounds Complainant had no opportunity to address; relied on an incomplete quotation of Del Monte's testimony; reversed the chronology and substance of the parties' dispute over the word "search"; treated Respondent's description of searches as proof that responsive documents were actually produced; credited a supposed search for Qichen that does not appear in the Villena Declaration; failed to address RFP No. 7 separately; summarily denied the fully briefed request under 46 C.F.R. § 502.150(b)(1) without analyzing that relief; revisited the materiality of discovery whose relevance had already been determined; materially truncated the Complaint's allegation that Respondent was engaged as an OTI; and materially misquoted the governing statute by replacing "point of receipt" with "point of origin." Those errors are addressed in Sections 2 through 14.

When a party fails or refuses to obey a discovery order, 46 C.F.R. § 502.150(b) authorizes the Presiding Officer to enter any order that is just, including an order directing compliance or treating designated facts as established. Complainant principally requests enforcement of the April 1 and June 5 Orders in time for Complainant to review and use the production before its opening merits brief is due on August 25, 2026. If complete production is not made in time for that purpose, the appropriate alternative is to treat the fact Respondent's nonproduction prevented Complainant from proving as established: that

Respondent assumed responsibility for the transportation of the two subject shipments from the port or point of receipt to the port or point of destination.

If reconsideration is denied, Sections 17 and 18 demonstrate why interlocutory review is necessary to prevent substantial delay, expense, detriment to the public interest, and undue prejudice to Complainant, as required by 46 C.F.R. § 502.221(a). Section 17 states the grounds for leave to appeal, and Section 18 contains the appeal itself, as required by § 502.221(b).

2. THE NEW CORPORATE TESTIMONY SHOWS RESPONDENT'S ACCOUNT OF ITS SEARCH AND PRODUCTION CANNOT BE TRUE

Complainant received the certified transcript of Respondent's July 2, 2026 corporate-designee deposition after the July 27 Order issued. That testimony places Respondent's corporate designee against Del Monte, whom Respondent identified as a participant in the searches, on two factual questions central to the denial of enforcement: whether anyone searched Del Monte's records and whether Respondent produced the communications Del Monte identified.

This is not a dispute over terminology. One witness describes a search he personally watched. The other says repeatedly that no search happened. One witness says the responsive communications were produced. The other identifies those communications, confirms they remain accessible, and testifies that he did not provide them.

The July 27 Order cannot treat sworn accounts that contradict each other on the very acts said to prove compliance as a sufficient basis for denying enforcement.

A. Villena testified that he observed employees' searches as they began. Del Monte testified, repeatedly, that no one searched his records.

The July 27 Order excused the conflict in Del Monte's testimony as a possible misunderstanding of the word "search." It rested that explanation on the first four words of a single answer, "everything was reviewed," while leaving off the rest of the same sentence: "and nothing, nobody searched anything." It then treated the shortened fragment as support for the Villena Declaration.

Villena's corporate testimony makes that explanation impossible. He did not describe an abstract review that a custodian might have misunderstood. He described a physical event: going to each employee, standing next to him, watching him search, and telling him how to do it.

Q. But you also testified, I just want to re-clarify, that you did not supervise the employees' searches. You just asked them, but you didn't, you didn't supervise or certify in any way that they had actually searched for and given you what you had asked for, correct?

A. I, I did. I went to each individual and, and I asked him to search next to me, how he was searching, and I told him to look at every different type of subject to make sure that we can capture.

Q. Oh, so, so now you, so now you were sitting next to them and you watched, right?

A. When I first saw it, when I first asked for them, yeah.

Q. Okay.

A. Not the whole time, but when I first started asking just to make sure that they do it right.

Villena Dep. Tr. 245:1–16.

Villena testified that he personally stood beside the employees and observed their searches as they began. Del Monte, whom Respondent identified as a participant in the searches, gave five answers denying that anyone searched his records, although the final exchange immediately shifted into a contradictory description of an email search:

Q. Did TSS search your emails for third-party communications as a part of this case, in order to give them to the Commission as required by the law.

A. I searched my own emails to do what?

Q. That's what I'm asking. Did, were your emails searched by anybody at TSS for third-party communications in relation to this case, yes or no; It's a yes or no.

A. Well, they were not searched. If anything, I have, people are copied in, but nobody searches them. Nobody --

Del Monte Dep. Tr. 85:22-86:5.

Only after that answer did the witness refer to snooping and digging. The question was then restated without any criminal or invasive wording, and the answer remained the same:

Q. So, nobody at TSS went through your emails in order to collect them to give them to FormuKleen, correct?

A. Yes.

Del Monte Dep. Tr. 87:4-6.

Q. The dispatch records were searched. Well, I just asked you, were your emails searched for third-party communications in relation to this case and you answered, "no."

A. No, nobody searched, nobody searched my emails to see what I did.

Q. Nobody at TSS searched your emails for this case?

A. Nobody that wasn't supposed to know was not supposed to know.

Q. Okay.

A. What are you asking me?

Q. Were delivery orders searched to your knowledge?

A. Everything was just reviewed and nothing, nobody searched anything.

Del Monte Dep. Tr. 88:6-19.

Q. Okay. Who searched your records, who at TSS searched your records --

A. Nobody did.

Del Monte Dep. Tr. 89:17-19.

Q. Interesting. So what date range was searched by anybody at TSS?

A. Nobody, nobody here has searched anything.

Q. What search terms were used by TSS to look up records in regards to this case in discovery?

A. Email.

Q. I'm sorry?

A. We were just searched by email to see, more or less, to get an idea that was it. No heavy investigation was, you know, nobody has dug around my email. Nobody went into my computer. None of that. The only, the only people that have been, that have any knowledge of this are the ones on the list. That's it. Nobody else.

Del Monte Dep. Tr. 90:10-22.

There is no terminology to reconcile. Villena testified that he observed the employees' searches as they began, while Del Monte denied that anyone went through his emails to collect documents for FormuKleen. Those accounts concern the same alleged collection-for-production event. Villena's qualification that he did not supervise continuously does not reconcile them: the conflict is whether that collection search occurred at all, not how long Villena observed it. One witness describes an event the other says did not happen.

A semantic explanation directed to one later exchange does not dispose of these repeated answers. It also does not establish production.

That conflict is factual, and it removes the only ground on which the July 27 Order set Del Monte's testimony aside. The Order treated his denials as confusion about what a search is. Del Monte was not talking about what the word means. He denied that anyone performed the acts Villena claims to have watched. His testimony therefore stands as direct evidence that no one searched his records, and the unresolved factual conflict prevents the Declaration from serving as reliable proof that the searches occurred as represented.

B. The semantic rationale was not Respondent's defense and appeared for the first time in the July 27 Order.

Before the semantic rationale can be evaluated against the testimony, a threshold problem must be addressed: Respondent never advanced it. Respondent addressed Del Monte's testimony by arguing that he was an operational employee who was not responsible for coordinating Respondent's litigation discovery and that selected excerpts from his testimony did not establish that Respondent failed to conduct reasonable searches. Respondent did not argue that Complainant and Del Monte understood the

word “search” differently, did not characterize Del Monte’s five denials as a vocabulary problem, and did not ask the Presiding Officer to disregard those denials on that basis. Respondent’s Opposition to Complainant’s Combined Motion for Leave to Exceed Page Limit and Amended Renewed Motion to Enforce, at 5–7 (July 22, 2026). The semantic explanation appeared for the first time in the July 27 Order and became a principal reason for denying enforcement.

The semantic explanation is not the only rationale in the July 27 Order that no party advanced. The Order states that it is “difficult to imagine there being relevant third-party communications that would be captured by a search for ‘Qichen’ that were not otherwise captured.” Respondent’s Opposition does not identify a single entity or search term Respondent used. It states only that Respondent “used those entities as additional search terms,” without naming any of them. Respondent’s Opposition, at 4. Nothing in the Opposition or in the Villena Declaration establishes that any search for Qichen was conducted.

The Order likewise concludes that “it appears likely that substantially all material third-party documents would have been captured by the searches described in the Villena Declaration.” Respondent did not make that argument either. Respondent’s position was that its operational role was limited, so few responsive communications were ever created. Respondent’s Opposition, at 3. That is an argument about the universe of documents, not about the adequacy of the search terms used to find them. The Order supplied a completeness finding about the search that the party defending the search never asserted.

Adjudicators ordinarily rely on the parties to frame the issues and serve as neutral arbiters of the matters presented. *Greenlaw v. United States*, 554 U.S. 237, 243 (2008); *United States v. Sineneng-Smith*, 590 U.S. 371, 375–76, 379–80 (2020) (holding that a court abused its discretion by materially redesigning a case around a theory no party advanced). Complainant recognizes that the party-presentation principle is flexible and that these decisions arose in Article III courts. The problem here is nevertheless concrete and does not depend on mechanically applying that principle to Commission adjudication.

Complainant presented evidence that the ordered searches and production were incomplete. The July 27 Order treated an explanation that Respondent never offered, and that no witness expressed, as a rebuttal to that showing. Because the rationale first appeared in the Order, Complainant had no notice that Del Monte’s understanding of an ordinary word would become dispositive and no opportunity to address that theory before enforcement was denied. The procedure therefore supplied Respondent with a defense it had not asserted, treated that unasserted defense as the reason Complainant’s evidentiary showing failed, and denied enforcement on a ground Complainant had never been called upon to address.

That problem is independently material under the reasoned decision making principles discussed in Section 10. The Order did not resolve a disputed interpretation advanced by the parties. It introduced an explanation absent from Respondent’s Opposition and unsupported by any witness, and then used that explanation to avoid the consequences of Del Monte’s repeated denials. See *Evergreen Shipping Agency (America) Corp. v. Federal Maritime Commission*, 106 F.4th 1113, 1117–18 (D.C. Cir. 2024). Reconsideration is necessary so that enforcement is decided on the arguments and evidence actually presented rather than on a defense constructed for Respondent in the Order.

Nor can the Order be defended as an exercise of solicitude toward an unrepresented party. *Greenlaw* expressly states that the party-presentation principle governs “in both civil and criminal cases.” 554 U.S. at 243. The specific *pro se* accommodation discussed in *Sineneng-Smith* concerned criminal cases and the liberal construction of a filing the litigant actually made-recasting its label to avoid

unnecessary dismissal or to align the stated claim with its underlying legal basis. 590 U.S. at 375–76 (citing *Castro v. United States*, 540 U.S. 375, 381–83 (2003)). This is a civil administrative adjudication, and the Order did not liberally construe any argument Respondent presented. It supplied three substantive explanations Respondent never advanced and no witness expressed, and then relied on those explanations to deny enforcement. An unrepresented party’s filings may be construed liberally; the party’s factual and evidentiary defenses may not be created for it by the adjudicator.

C. The finding of a semantic misunderstanding has no basis in the testimony.

The Order states that Complainant and Mr. Del Monte “apparently did not understand the word ‘search’ in the same way” and that, “[w]ithout clarification that there was a common understanding of the meaning of ‘search,’” his testimony concerning searches was not persuasive. That conclusion has no identifiable basis in the record. Mr. Del Monte never stated that he did not understand the word “search,” never asked what the word meant, and never defined it as an act different from reviewing records. No such clarification was requested because the witness repeatedly understood and substantively answered questions about whether specific categories of records had been searched. And, respectfully, the supposed semantic distinction is not relevant to whether Respondent complied with the production Orders.

More fundamentally, the Order itself quotes the clarification it later declares absent. The Order acknowledges that Complainant asked: “So, nobody at TSS went through your emails in order to collect them to give them to FormuKleen, correct?” and that Mr. Del Monte answered, “Yes.” (July 27 Order, at 2; Del Monte Dep. Tr. 87:3–6). That question did not depend on an abstract or undefined use of the word “search.” It described the precise conduct at issue—going through emails to collect responsive documents for production to Complainant. The Order cannot quote that express clarification and then conclude, one paragraph later, that no clarification established a common understanding.

The chronology further defeats the Order’s rationale. The “snooped around” and “digging around” exchange cited by the Order occurred at 86:6–87:1. Complainant’s express reformulation occurred immediately afterward at 87:3–6. The Order therefore relies upon an earlier objection to the phrasing while disregarding the subsequent clarification and answer that resolved any conceivable ambiguity.

Nor does Mr. Del Monte’s statement that “[p]erforming a search makes it look like some kind of criminal action” establish that he understood “search” to mean a different act. He used the word “search” in the very sentence the Order treats as proof that he did not understand it. His remark was about connotation, not definition. Being asked whether he had “searched” records carried, to him, the implication that Respondent’s ordinary business conduct was under criminal suspicion, and he was resisting that implication. A witness who objects to what a word implies is demonstrating that he understands what it means. His later testimony confirms the distinction. He testified that he searched his own records “of course,” explained that “we just searched emails to see what was sent and...when,” and distinguished that limited review from a “heavy investigation,” “digging around” his email, or entering his computer. He was describing the scope and intensity of the search he performed, not identifying a categorically different activity.

The Order does not explain how it moved from those statements to the conclusion that the witness and Complainant lacked a common vocabulary. It identifies no testimony in which Mr. Del Monte stated that “search” meant only a criminal investigation, no instance in which he failed to understand which records were being discussed, and no answer rendered unintelligible by an alternative definition. Instead, Mr. Del Monte answered whether TSS searched emails, text messages, WhatsApp messages, his phone,

Magaya entries, dispatch records, delivery orders, arrival notices, trucking communications, warehouse communications, and his own records. He then described what was searched and how. The conclusion that he did not understand the operative term cannot be reconciled with the examination as a whole.

What the testimony demonstrates is not semantic confusion but substantive contradiction. Mr. Del Monte testified that nobody searched his email, that he personally searched his records “of course,” that “we just searched emails,” that dispatch materials were reviewed, and later that “nobody here has searched anything.” Those answers presented a credibility issue and evidence of an incomplete or inconsistent discovery process. The Order converted those contradictions into an imagined vocabulary dispute and then used that supposed dispute to disregard the testimony altogether.

There is therefore no discernible evidentiary or logical path from the cited testimony to the Order’s finding of a semantic misunderstanding. The record shows that Mr. Del Monte understood the questions, used the word “search” in its ordinary sense, described searches that occurred, distinguished limited review from a more extensive investigation, and supplied materially inconsistent answers. The Order’s contrary conclusion rests upon a reversed chronology, an inference the witness never expressed, and the selective use of incomplete testimony. It cannot support the denial of enforcement.

D. The Order turned one incomplete clause into corroboration of the Declaration.

In the course of his testimony about “searches” of his email, Mr. Del Monte testified that “everything was reviewed[.]”...It is unclear what Mr. Del Monte meant by “reviewed,” though it suggests that someone looked at emails or database entries. This is consistent with the Villena Declaration. In sum, in light of Mr. Del Monte’s testimony that “everything was reviewed,” his apparent understanding of the word “search,” and the Villena Declaration’s sworn assertion that searches were performed, I am unable to find that Complainant carried its burden of showing that Mr. Del Monte’s testimony establishes that Respondent failed to search Mr. Del Monte’s emails.

July 27 Order, at 3.

The full answer was: “Everything was just reviewed and nothing, nobody searched anything.” (Del Monte Dep. Tr. 88:17-19). The question concerned delivery orders, not email generally. The Order retained the first four words, omitted the rest of the same sentence, used the fragment as the only testimonial support for the Declaration, and did not reconcile the complete sentence with Del Monte’s repeated and conflicting accounts of what TSS actually reviewed. Read in full, the answer does not corroborate the Declaration. It contradicts it.

E. Villena claimed complete production. Del Monte identified the communications, confirmed they still exist, and testified that he did not provide them.

Respondent’s witnesses conflict a second time, on production.

Del Monte identified the responsive trucker, customs, and warehouse communications and testified that he did not provide them:

Asked whether the third-party communications from which FormuKleen was absent had been provided-either previously or when required in this proceeding-Del Monte answered:

“I did not do it, no.”

Del Monte Dep. Tr. 121:8–12.

Villena, speaking for the corporation, said the opposite:

Q. Did TSS communicate with the trucker about where to pick up or deliver BSIU?

A. Yes, in the delivery order.

Q. Were all of those communications produced?

A. Yes.

Villena Dep. Tr. 238:2-6.

The communications at issue are not hypothetical, and Del Monte explained why FormuKleen does not already have them. He did not copy FormuKleen when he contacted the port to pay the terminal fee, “No, I don’t include them.” He testified that he contacted the trucker and then contacted FormuKleen “on a separate email.” He confirmed that “Most of the time, FormuKleen wasn’t copied on a lot of emails.” Del Monte Dep. Tr. 84:25–85:8, 118:2–4. He then described the records themselves: “Of course there are emails,” including “my email telling the driver to pick up the container at the port and to bring it to the warehouse,” and the warehouse transmission of “a copy of the packing list and the delivery order.” Del Monte Dep. Tr. 119:13–120:5. And he confirmed they can still be retrieved: “Emails are accessible.” Del Monte Dep. Tr. 120:6–11.

Respondent’s own evidence supplies no coherent account of how communications sitting in Del Monte’s accessible records were collected and produced, when Del Monte says no one searched those records and that he did not provide the communications. Respondent has never offered one.

Asked directly for the corporation’s position on completeness, Villena would not give it:

Q. Does TSS contend that all responsive third-party communications were produced?

A. They’d like to believe so, yes.

Villena Dep. Tr. 218:9–11.

He was asked what Respondent contends. He did not say the production was complete. He moved Respondent into the third person, “they,” and gave what Respondent would “like to believe” in place of what Respondent had done. That is the witness designated to speak for the corporation, declining to state the corporation’s position on the question the July 27 Order treated as sufficiently answered to deny enforcement.

F. The July 27 Order cannot stand on a search-and-production account Respondent’s own witnesses have made impossible to credit.

The certified transcript is newly available evidence identifying a substantive error in material fact in the July 27 Order. Complainant received it after the Order issued, and it contradicts the factual premises on which the Order denied enforcement.

The Order rested on two premises. It treated the Villena Declaration as reliable evidence that Respondent completed the required search and production. And it treated Del Monte's contrary testimony as a misunderstanding of the word "search."

The corporate testimony takes away both. The semantic explanation fails because Villena described watching a search that Del Monte denies ever occurred, and no confusion about terminology reconciles an event with its denial. The Declaration's reliability fails because Villena executed it and then, testifying as Respondent's corporate designee, described a search Del Monte, an identified search participant, says never happened and would not state that the production was complete.

The Presiding Officer need not decide which witness testified falsely. Respondent chose both witnesses and is answerable for both accounts. When a party's corporate designee and an identified search participant describe mutually exclusive facts about the searches and production, Respondent cannot rely on either account to support a finding that it obeyed the April 1 and June 5 Orders. The contradiction destroys the evidentiary basis for denying enforcement.

The July 27 Order should be reconsidered. The April 1 and June 5 Orders remain unsatisfied and must be enforced. The Presiding Officer should impose relief under 46 C.F.R. § 502.150(b)(1), including taking as established, for purposes of the merits determination, that Respondent assumed responsibility for the transportation of the two subject shipments from the port or point of receipt to the port or point of destination.

3. THE DISCOVERY WAS LITIGATED, COMPELLED, AND ORDERED AGAIN

A. Daniel W. Raab, P.A. litigated Respondent's scope and relevance objections.

RFP No. 4 requested "[a]ll TSS communications with parties other than FormuKleen relating to all FormuKleen shipments managed by TSS, including the subject shipments." RFP No. 7 requested records of duties, drayage, warehousing, storage, port-related charges, and other charges TSS paid or advanced on FormuKleen's behalf. Respondent objected that the requests were overly broad and irrelevant. (April 1 Order, at 10-11). Daniel W. Raab, P.A. represented TSS during the conferral and Motion to Compel proceedings and signed Respondent's filings opposing the requested relief. The objections were not overlooked or misunderstood. They were presented and decided. The Order rejected Respondent's objections as "off-mark" and expressly granted the Motion to Compel as to RFP Nos. 4 and 7:

Respondent's arguments are off-mark. Determining whether a respondent is acting as an OTI is a fact-intensive inquiry...[H]ow Respondent interacted with Complainant in the past can be relevant to how it acted with regard to the shipments at issue. In addition, how Respondent interacts with third parties, including in its advertising and how it conducts its operations, can be relevant to the ultimate inquiry in this case. In other words, because the determination of whether an entity is a common carrier partly depends on how the entity holds itself out to the public, almost any communication between Respondent and any third party is potentially relevant...[T]he services Respondent provides are generally relevant.

April 1 Order, at 11.

The Order's operative language was direct: "the MTC is GRANTED IN PART as to RFP Nos. 4 and 7" and "Respondent is to supplement its responses to RFP Nos. 4 and 7" (April 1 Order, at 14). The

declaration requirement was separate. The Commission ordered both production and a sworn description of the searches. One could not substitute for the other.

B. Spector Rubin entered after the Order, understood it, and obtained more time to comply.

Spector Rubin, P.A. entered on April 10 as Respondent's second law firm. Its first filing stated that the April 1 Order required supplemental responses to RFP Nos. 4 and 7 and a sworn declaration. It also stated: "The Order contemplates the gathering, review and production of all records for every shipment handled by Respondent for Complainant." (Respondent's Motion for Extension of Time, at 1 (Apr. 10, 2026)).

As new counsel, the undersigned respectfully submits that it requires additional time to review the procedural history and filings in this case, review the document production and interrogatory responses and ensure that Respondent's supplemental responses and sworn declaration are complete, accurate, and compliant with the [Commission's] Order.

Respondent's Motion for Extension of Time, at 2 (Apr. 10, 2026).

The Commission granted the extension to April 29. Spector Rubin then handled the supplemental production and the Villena Declaration. Its later withdrawal motion expressly stated that TSS would remain responsible for all filings, deadlines, and obligations unless and until substitute counsel appeared. (Consent Motion to Withdraw, at 2, ¶ 6 (May 13, 2026)). The May 14 Order granted withdrawal but denied the implied request to extend or stay deadlines. (May 14 Order, at 2-3). TSS had counsel when it litigated the dispute, different counsel when it complied, and no stay of its obligations when the second firm withdrew.

C. The May 21 Order did not find compliance; it identified the continuing defect.

I appreciate Complainant's point that the Villena Declaration indicates that searches were conducted regarding only two third-party email addresses, whereas there were several third-parties involved...The certification does not indicate if the question regarding third-party email addresses-which is a good question-was specifically communicated to Respondent. If it were, perhaps this matter could have been resolved without motion practice.

May 21 Order, at 7.

Conversely, in the Notice of Continued Production, Respondent all but admits that its document searches to date have been deficient...Respondent now essentially states that it did not previously understand its discovery obligations, and acknowledges that its discovery responses have been deficient-thus, I can appreciate why Complainant may have thought that attempting to resolve discovery disputes without my intervention was pointless. Further, Respondent has changed its representative twice since April 10, 2026, at critical times in the discovery process. Accordingly, I am concerned that Respondent may be engaging in gamesmanship with respect to its representative.

May 21 Order, at 8.

The May 21 Order denied the first enforcement motion without prejudice because the Presiding Officer found the conferral certification unclear. (Id. at 7, 9). It did not find that TSS complied, vacate the April 1 Order, or decide that the missing third-party communications and RFP No. 7 records did not

matter. Complainant then conferred again, and the Commission held the June 4 conference to address the same defect.

D. The June 5 Order gave TSS no remaining room to claim confusion.

Complainant asserts that Respondent still has not produced all third-party communications related to the two containers at issue. Respondent maintains that it has produced all third-party communications related to the two containers at issue. In order to advance this issue towards resolution, Complainant indicated that it will take third-party discovery and will take depositions of Respondent's corporate designee and/or individuals who work for Respondent. Accordingly, I will hold Complainant's Renewed Motion to Enforce April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions in abeyance, and will permit Complainant to amend its Renewed Motion after it conducts its additional discovery.

June 5 Order, at 2.

Respondent is still required to produce all third-party communications related to the two subject shipments.

June 5 Order, at 2.

That was a second, independent production command for the core RFP No. 4 material. It was entered after the historical-shipment issue had been removed and after TSS heard the Presiding Officer explain the exact problem at the conference. The April 1 compulsion of RFP No. 7 also remained in place. The July 27 Order did not find that TSS obeyed either obligation.

E. Respondent identified numerous involved or potentially involved persons and entities, but its declared Magaya and Outlook searches do not establish that it retrieved all responsive records, its production omitted communications with known participants, and its own later filings revealed additional omitted entities.

In its signed Supplemental Response to Interrogatory No. 1, Respondent identified seven TSS personnel who "were or may have been involved in the handling, transportation, storage, release, or diversion of the subject shipments": Domingo Santos, Eddy Delmonte, Isaac Sarmiento, Ricky Villena, Sergio Rabelo, Samantha Karam, and Yesireth De Freitas. Respondent's Supplemental Responses to Complainant's Interrogatories at 1-2 (Apr. 29, 2026). Respondent also identified Shirley Zhu of Top Sealand International Co., Limited; Zoe of Dolphin Logistics; Nic H. and Johnny of DHY Shipping Line Inc.; Greta Mena and Yami Melendez of SeaBlue Freight Container Inc.; a representative of CMA CGM; a representative of Ningbo Qichen International Logistics Co., Ltd.; and a representative of South Florida Container Terminal. Id. at 2-3. Those persons and entities were identified in Respondent's supplemental interrogatory response, not in the Villena Declaration.

The Villena Declaration states that TSS "maintains all electronic documents on the Magaya Freight Management Platform," which "maintains documents and information relating to each and every shipment handled by TSS." Villena Decl. ¶ 6. It further states that "[a]ll electronic communications of TSS," including emails and associated metadata, are created, transmitted, received, and maintained through the company's Microsoft Outlook system. Id. ¶ 7.

The Declaration identifies Ricky Villena, Rachel Villena, Eddy Delmonte, and Veronica Martino as the four individuals who participated in conducting the searches. Id. ¶ 13. The relevant question is

what those individuals searched for and whether the disclosed searches were sufficient to retrieve all responsive records. Paragraphs 14 and 15 provide the Declaration's complete list of disclosed search terms and criteria.

For Magaya, the only disclosed criteria were Client: FormuKleen; invoice numbers issued to FormuKleen; master-shipment numbers associated with FormuKleen; container numbers associated with FormuKleen; and bill-of-lading numbers associated with FormuKleen. Id. ¶ 14. The Declaration discloses no Magaya search directed to any of the seven TSS personnel identified in the interrogatory response and no search using the name, address, email address, domain, or any other party-directed criterion associated with CMA CGM, DHY Shipping Line, Ningbo Qichen, Top Sealand, Dolphin Logistics, SeaBlue Freight Container, South Florida Container Terminal, or any identified individual associated with those entities.

The significance of that omission depends on the manner in which TSS configured and used its own Magaya system. At the June 4 conference, Complainant explained that Magaya is either user-defined or configured through professional services and that searchability therefore depends on how the particular user creates, labels, attaches, assigns, and indexes its documents. June 4 Recording at 11:12–19:04. The Presiding Officer expressly understood the resulting problem:

So, if I understand the issue, the issue is that the Magaya system could be organized however Respondent wants to organize it. And so, if you want to find documents related to a particular third party in relation to a container, they would be the ones to know the right terms to look for, and you do not know what to ask for. So I understand that problem.

Id. The Presiding Officer later reiterated that there was “some amount of flexibility in how you set up your Magaya account,” making it important to know whether the searches performed actually reached the universe of responsive records. Id. at 39:41–40:38.

The point is not that Respondent had an independent obligation to disclose every feature of its Magaya configuration. The point is that Respondent alone controlled and understood that configuration and therefore alone knew which searches were necessary to retrieve all responsive records. The Declaration's statement that TSS searched five generic categories proves only that those searches were run. It does not establish that, in the particular manner TSS created, labeled, attached, assigned, and indexed its records, those five criteria were capable of retrieving every responsive document and communication.

The disclosed Outlook methodology was only marginally broader. Among its listed Outlook criteria, the Declaration identifies direct searches for only two non-FormuKleen third-party email addresses: zoe@dolphin-usa.com and dispatch@seabluefreight.com. Villena Decl. ¶ 15(f)-(g). It discloses no party-directed Outlook search for Domingo Santos, Eddy Delmonte, Isaac Sarmiento, Ricky Villena, Sergio Rabelo, Samantha Karam, or Yesireth De Freitas. It likewise discloses no Outlook search for Shirley Zhu or Top Sealand; Nic H., Johnny, or DHY Shipping Line; Greta Mena or Yami Melendez; CMA CGM; Ningbo Qichen; or South Florida Container Terminal or any other third party. Even as to Dolphin and SeaBlue, the Declaration identifies only Zoe's individual address and a generic SeaBlue dispatch address, not searches for the company names, their domains as such, other Dolphin contacts, or the two SeaBlue individuals Respondent itself identified as involved or potentially involved.

The remaining Outlook criteria were FormuKleen; four FormuKleen addresses; FormuKleen invoice numbers; master-shipment numbers; container numbers; and bill-of-lading numbers. Id. ¶ 15(a)-(e), (h)-(k). Those identifiers might retrieve communications in which they appeared, but the Declaration

does not establish that every responsive communication necessarily contained one of them. A communication directing a trucker, coordinating with a warehouse, arranging a hold, authorizing a release, discussing a payment, or changing a delivery destination could concern one of the subject shipments without repeating a container number, invoice number, bill-of-lading number, or master-shipment number. Running the disclosed searches therefore does not itself establish that all responsive Outlook communications were retrieved.

The resulting production confirms that the declared searches did not establish completeness. Respondent did not produce the complete communications involving the TSS personnel it identified as involved or potentially involved in the shipments and the outside entities that participated in the transportation. It did not produce the complete communications with CMA CGM, DHY Shipping Line, Ningbo Qichen, Top Sealand, or South Florida Container Terminal concerning the two subject shipments. Nor did searches directed to one Dolphin address and one generic SeaBlue address establish a complete production of the communications with Dolphin, SeaBlue, or all of the identified individuals associated with those entities.

These were not speculative persons or entities proposed by Complainant. Respondent itself identified them as having been, or potentially having been, involved in the handling, transportation, storage, release, or diversion of the shipments. Their communications were therefore part of the known universe responsive to RFP No. 4 and the June 5 Order. Yet the four individuals who were claimed to have conducted Respondent's searches, despite Mr. Del Monte's contradictory statements, used no disclosed Magaya criterion directed to any of them and only two disclosed third-party address criteria in Outlook. The Declaration nevertheless states categorically that "there are no additional document locations to be searched, nor searches to be performed." Villena Decl. ¶ 17.

Respondent's documents and testimony also identified additional outside transportation participants, including Pomtoc, Tropical Shipping, and Miami Container Repair. None appears among the disclosed Magaya or Outlook search criteria. These additional participants further demonstrate that the persons and entities listed in the supplemental interrogatory response did not exhaust the universe of parties involved in the two shipments.

Respondent's own response to the renewed motion to enforce then attached two bills of lading identifying Thunder Container Transport, Inc. as directly involved in the movement of both subject containers. Those bills of lading identify Thunder by name, identify the relevant containers and chassis, and provide Thunder's dispatch email address.

Thunder does not appear in Respondent's signed supplemental interrogatory response, despite Interrogatory No. 1 requesting identification of the employees, contractors, and agents involved in the handling, transportation, storage, release, or diversion of the subject shipments. Thunder also does not appear anywhere in the Villena Declaration. Its name, domain, and dispatch address are absent from both the disclosed Magaya criteria and the disclosed Outlook criteria. Respondent's separately designated third-party-communications productions for CHSU4047424 and BSIU8431017 likewise contain no communication to or from Thunder.

Thunder's omission establishes two separate deficiencies. First, Respondent's supplemental interrogatory response did not identify the complete universe of outside parties involved in the subject shipments. Second, the searches conducted by Ricky Villena, Rachel Villena, Eddy Delmonte, and Veronica Martino did not include any disclosed Magaya or Outlook criterion directed to Thunder, even though Respondent possessed bills of lading identifying Thunder as directly involved in moving both

containers. Respondent's own later filing thus revealed a transportation entity that was absent from its signed discovery response and sworn search criteria, and whose communications were absent from Respondent's designated third-party-communications productions.

Thunder's omission from the interrogatory response and declared search criteria, together with the absence of its communications from the designated third-party-communications productions, leaves no reliable basis to assume it was the only omitted entity. The omission supports the inference that other involved persons, entities, records, and communications may likewise have remained outside the searches Respondent performed.

4. THE JULY 27 ORDER CHANGED THE QUESTION FROM COMPLIANCE TO EXCUSE, SEARCH, AND MATERIALITY

A. The Order stated the wrong practical burden.

As an initial matter, Complainant complains in the RME that it is "backward" that Complainant is being required to prove that Respondent's searches and productions were deficient despite the April 1 Order compelling productions regarding RFP Nos. 4 and 7...As noted above, however, the burden of proof is on the proponent of an order...To the extent Complainant asserts Respondent failed to comply with the April 1 Order, the burden is on Complainant to so demonstrate. Therefore, it is not "backwards" or unfair to make Complainant prove its assertion-that is what the law requires.

July 27 Order, at 2.

Complainant does not dispute that it bore the burden of showing noncompliance. It satisfied that burden. Noncompliance with a production order is necessarily established by comparing what the Order required with what Respondent actually produced. Complainant identified the categories required by the Orders, identified the known third parties absent from the production, showed that the Declaration described searches involving only two third-party email addresses, identified custodians and document sources omitted from the Declaration, and obtained sworn testimony establishing that specific responsive communications and records existed and that the responsible employee's records were not searched or collected as represented.

Complainant also expressly offered at the June 4 conference to provide the Commission with every version of Respondent's approximately 400-page production so that the Commission could review the production itself and determine whether the ordered documents were present. June 4 Recording at 35:58-37:54. The Presiding Officer did not direct Complainant to submit it. Instead, Complainant was directed to undertake depositions and create a clearer record concerning what existed, what had been searched, and what remained missing. Complainant did exactly that.

There is no additional evidentiary showing Complainant could make. An unproduced document cannot be attached as evidence of its own nonproduction. The production itself establishes what Respondent produced, and the Orders establish what Respondent was required to produce. When the required records are absent from the production and Respondent's own witnesses confirm that those records existed and were not searched or collected, noncompliance has been shown. Were that insufficient, no party could ever establish nonproduction unless the noncomplying party expressly admitted withholding the documents.

The July 27 Order imposed a different and impossible burden: prove the precise contents and ultimate merits value of documents TSS withheld. A party can establish that required records existed and were not produced. It cannot prove every fact contained in records it has never been permitted to see. The uncertainty created by TSS's nonproduction is precisely why enforcement is required; it cannot rationally be transformed into a reason to deny enforcement.

The dispositive question remains straightforward: Did TSS produce the documents the Commission ordered it to produce? **It did not.**

B. The full “miscommunication” explanation is contradicted by the record.

There was miscommunication about how RFP Nos. 4 and 7 were to be understood. By their terms, RFP Nos. 4 and 7 requested documents related to “any” and “all” FormuKleen shipments that Respondent participated in. Indeed, Complainant's Complaint alleged that a “consistent course of dealing” between the parties helped establish that Respondent acted as an ocean transportation intermediary. Accordingly, in light of the allegations and Commission guidance, I concluded that all historic interactions between the parties were relevant, and ordered production of third-party communications. Respondent apparently did not appreciate the full scope of RFP Nos. 4 and 7, as well as my April 1 Order, until late May 2026. Respondent asked to narrow the scope of my April 1 Order. Complainant's representative clarified and narrowed the scope of RFP Nos. 4 and 7, and limited them to documents related to the two containers at issue.

July 27 Order, at 4 n.1.

That explanation cannot support denial of enforcement. First, Daniel W. Raab litigated Respondent's objections before the April 1 Order. Second, Spector Rubin entered on April 10, expressly stated that the Order contemplated all shipment records, and requested time to make compliance complete and accurate. Third, the May 21 Order itself stated that Respondent all but admitted deficient searches and expressed concern about gamesmanship. Fourth, Complainant did not narrow the categories of documents concerning the two subject containers. It relinquished pursuit of the additional historical shipments. The complete obligation for the two subject shipments remained. Fifth, whatever confusion allegedly existed before June 5 ended when the Commission stated in one sentence that TSS was “still required to produce all third-party communications” for those shipments.

The scope of the dispute and the deficiency in Respondent's production were therefore fixed on the record on March 19, thirteen days before the April 1 Order, before Spector Rubin's April 10 written acknowledgment that the Order reached “all records for every shipment,” and forty-one days before the Villena Declaration was served. Respondent was expressly advised that Complainant sought third-party communications and invoices, that those materials had not been included in the March 5 production, and that additional production would likely be required.

Even accepting the July 27 Order's premise for the sake of argument, it does not explain the denial of enforcement. The purported uncertainty concerned whether the April 1 Order extended beyond the two subject shipments to every shipment Respondent handled for Complainant. It did not concern Respondent's obligation to produce responsive third-party communications for the two subject shipments. That obligation was repeatedly and expressly identified.

During the parties' January 11, 2026 conferral, Complainant advised Respondent that “Respondent must produce these communications in full for the two subject shipments.” On January 27,

2026, Complainant again requested “all responsive third-party communications for the two shipments at issue.” On March 5, 2026, Complainant again requested supplementation with the “responsive third-party communications to RFP 4 for the 2 shipments at issue.”

Respondent thereafter retained Spector Rubin, P.A., which represented to the Commission that “[t]he Order contemplates the gathering, review and production of all records for every shipment” and obtained additional time to comply. After Respondent served its April 29, 2026 supplemental production, Complainant immediately advised Respondent’s counsel on April 30, 2026 that “Respondent’s supplemental production for RFP 4 appears facially incomplete as to the two subject containers.” Complainant further advised: “I do not see comparable third-party communications relating to BSIU8431017.” Complainant also stated: “I do not see communications with CMA-CGM concerning either subject container,” “Nor do I see communications with the other NVOCCs identified in Respondent’s supplemental interrogatory response, including DHY Shipping Line Inc. and Ningbo Qichen International Logistics Co., Ltd.,” and “More importantly, I do not see any third-party communications or dispatch records reflecting the instruction, routing, delivery address, delivery order, appointment, or other direction by which either subject container was diverted or delivered to TSS’s warehouse rather than to FormuKleen.” Complainant demanded: “Please supplement Respondent’s RFP 4 production within five business days with all communications between TSS and any party other than FormuKleen relating to CHSU4047424 and BSIU8431017....”

When Respondent failed to cure those deficiencies, Complainant again wrote to Spector Rubin on May 6, 2026, stating: “This response concerns Respondent’s discovery obligations and deficiencies in Respondent’s compelled RFP 4 production. It is not a settlement communication.” Complainant further advised that “Respondent’s previously emailed discovery conferral response of May 05 does not resolve the RFP 4 issue,” that “RFP 4 expressly calls for ‘all TSS communications with parties other than FormuKleen’ relating to FormuKleen shipments, including the subject shipments,” and that “The issue is the absence of TSS communications with parties other than FormuKleen concerning CHSU4047424 and BSIU8431017....” Complainant again requested: “If Respondent contends those communications and records concerning the subject containers have already been produced, please identify the specific Bates ranges where they appear.”

An explanation for noncompliance is not compliance. Even if TSS misunderstood the April 1 Order, that would explain why it failed to obey; it would not establish that it obeyed. And no asserted misunderstanding survived June 5.

C. The July 27 Order also used the historical-shipment issue to erase a separate search defect.

Complainant points out that in the May 21 Order, I commented that Respondent’s Notice of Continued Production, where Respondent said its searches were limited to documents related to the two containers at issue, all but admitted its searches and production were deficient... My comment should be understood against the backdrop [of] a broad understanding of RFP Nos. 4 and 7, as discussed in n.1 above.

July 27 Order, at 4-5 n.2 (brackets supplied).

The May 21 Order identified two different issues. One was whether production extended to the additional historical shipments. The other was whether TSS had searched the custodians, third-party addresses, and repositories connected to the two subject shipments. Giving up the historical shipments resolved the first issue. It did nothing to resolve the second. The May 21 Order called the third-party-

address defect “a good question.” The Presiding Officer asked that same question directly at the June 4 conference. The June 5 Order then preserved the entire third-party-communications obligation for the two shipments. Footnote 2 cannot convert resolution of one issue into compliance with another.

5. THE PROCEDURE IMPOSED HAS REQUIRED COMPLAINANT TO RELITIGATE, INVESTIGATE, AND FINANCE COMPLIANCE WITH DISCOVERY ALREADY LITIGATED AND ORDERED, AND HAS CREATED A ROADMAP FOR SELECTIVE NONCOMPLIANCE

This dispute should have ended with production.

Respondent, represented by Daniel W. Raab, P.A., litigated its objections to RFP Nos. 4 and 7. The Commission rejected those objections and compelled production on April 1. Spector Rubin, P.A. then entered on Respondent’s behalf and obtained additional time specifically to review the production and ensure that Respondent’s supplemental responses and sworn declaration were “complete, accurate, and compliant” with the April 1 Order. Respondent nevertheless failed to make the required production. Complainant conferred again, identified the deficiencies, warned that enforcement would follow, and moved to enforce.

Rather than require Respondent to produce the documents already ordered, the Commission repeatedly required Complainant to do more: explain the requests again, identify third parties from an incomplete record, propose searches of systems controlled exclusively by Respondent, investigate Respondent’s internal document practices, take depositions, obtain transcripts, identify missing custodians and document categories, explain what each missing record would prove, and amend its enforcement motion.

At the June 4 status conference, the Presiding Officer initially stated that he had expected Complainant to give TSS a more specific list of names, domains, and searches:

THE PRESIDING OFFICER: Those are the ones you are aware of, right? And I understand that you may not know of the others. So, if I understand the issue, the issue is that the Magaya system could be organized however Respondent wants to organize it. And so, if you want to find documents related to a particular third party in relation to a container, they would be the ones to know the right terms to look for, and you do not know what to ask for. So I understand that problem. And I know you have said you want all third-party communications in relation to these containers.

June 4 Recording at 11:12-19:04.

The significance of that exchange is not limited to who bore responsibility for designing the searches. Complainant expressly warned the Commission of the precise prejudice that the subsequent process has created.

Complainant does not contend that the Presiding Officer intended to facilitate noncompliance. The problem is the practical effect of the procedure imposed. At each successive stage, Complainant has been required to disclose another component of its evidentiary theory and another gap in Respondent’s production: the known third parties, their names and domains, the relevant custodians, the Magaya configuration, the Outlook mailboxes, the delivery orders, the changed destinations, the warehouse notifications, the trucking instructions, the hold and release emails, the payment records, and the specific relationship between each category and the unresolved NVOCC issue.

That process has not merely told Respondent what it should search. It has also told Respondent exactly:

- what evidence Complainant does not possess;
- which records would be most probative against Respondent;
- which custodians and communications Complainant has independently discovered;
- which gaps the Commission presently considers important; and
- which unproduced records would bear directly on whether Respondent assumed responsibility for transportation.

Every additional explanation required from Complainant becomes an increasingly detailed index of what Respondent may continue to omit. Respondent later admitted that it “used the third parties identified in Complainant’s June 1, 2026 Motion to Enforce as additional search terms.” Respondent’s Opposition, at 2. That admission confirms the precise problem Complainant raised at the June 4 conference: Complainant was being forced to design Respondent’s searches from the incomplete information Respondent had produced. Respondent could then use Complainant’s list as both the limit of its search and a roadmap for omission-searching only the names Complainant had discovered, producing whatever those searches returned, and leaving undisclosed every participant, communication, and record that only Respondent knew existed.

The resulting asymmetry is untenable. Complainant must reveal, one category at a time, every record it believes exists and precisely how that record could damage Respondent’s position. Respondent, which alone controls the systems and documents, is then permitted to respond with another explanation, another claimed misunderstanding, another description of unspecified searches, or a limited production confined to the categories Complainant has already managed to identify. Unknown parties, unknown fields, unknown aliases, unknown custodians, and unknown document categories remain safely outside Complainant’s view.

That is the exact “roadmap to withhold” Complainant identified at the June 4 conference. The Presiding Officer expressly understood the problem. Yet the July 27 Order ultimately used the uncertainty created by Respondent’s control of the evidence against Complainant.

The Presiding Officer then rejected Respondent’s vague reliance on “targeted searches”:

THE PRESIDING OFFICER: You said you provided targeted searches, but what I do not know is what those targeted searches involved. Again, I was saying earlier that, to help them know the universe of what does exist, it is helpful to know what you searched for.

A term like “targeted searches” means nothing to me. I trust Ms. Dandan is correct that there is some amount of flexibility in how you set up your Magaya account, in which case it might be helpful to know how it is organized.

June 4 Recording at 32:00–34:42, 39:41–40:38.

The Presiding Officer then directed Complainant to use depositions to create a record for enforcement and possible sanctions:

Then, depending on how they answer, you can redo your Motion to Enforce and make it really specific: they have not looked for X, Y, or Z. When the record is set up like that, I can start talking about potential sanctions if necessary-discovery sanctions-so that you can get yourself a really clear record as to what exactly is missing and how it is deficient.

There is a mechanism to award sanctions for failure to provide discovery. So I think maybe there really does need to be a corporate deposition, and we can get a really clear record of what was produced, what was searched for, what the universe is of documents to look for, and whether anything was deleted.

If Ms. Dandan can create a record showing how the searches and productions were deficient, we can do a Motion to Enforce at that point. Conversely, if Respondent satisfies me that it has done thorough, complete searches of its universe and this is all it has, then we can go from there.

June 4 Recording at 42:09-45:55.

At the conclusion of the conference, the Presiding Officer expressly confirmed that the purpose of the depositions was to give Complainant the complete record needed for a ruling:

MS. DANDAN: So you are not issuing an Order on the renewed enforcement motion yet?

THE PRESIDING OFFICER: Right. I think the best way to do it is, like you said, just take the deposition, and then that way you will have your completely clear record, and then we can go from there.

MS. DANDAN: Perfect. Thank you, Your Honor.

June 4 Recording at 57:13-57:34.

The June 5 Order implemented that procedure. It held the renewed enforcement motion in abeyance, permitted Complainant to conduct the additional discovery and amend its enforcement motion, and simultaneously ordered:

“Respondent is still required to produce all third-party communications related to the two subject shipments.”

June 5 Order at 2.

The word “still” matters. The depositions did not replace Respondent’s production obligation. The Commission recognized that the existing obligation remained unsatisfied and operative.

Complainant then did everything the Commission required. It prepared for and took the depositions, paid the reporter and transcript expenses, questioned Respondent’s employees about Magaya, Outlook, delivery orders, custodians, communications, trucking instructions, warehouse notifications, payment records, and hold-and-release instructions, reviewed the resulting testimony, identified specific missing categories and custodians, and prepared an amended renewed enforcement motion.

The July 27 Order nevertheless did not determine that Respondent complied. It revisited scope, terminology, search methodology, cumulative value, and the predicted usefulness of records the Commission had already held discoverable. It required Complainant to prove and reprove noncompliance while leaving the underlying production obligation unsatisfied.

The Commission cannot require Complainant to litigate entitlement to discovery, prevail, chase compliance through successive counsel, explain the Order directly to Respondent, disclose its evidentiary theory and the gaps in its possession, investigate Respondent's privately configured systems, take depositions to establish noncompliance, pay the resulting expenses, and amend its enforcement motion-only to return to whether the ordered documents might be useful enough to warrant production.

That process has already caused substantial expense and undue prejudice. Requiring FormuKleen to proceed to merits briefing on an incomplete record would compound both and create the possibility of repeated discovery, testimony, document review, and briefing if the error is corrected only after an initial decision.

6. RESPONDENT'S OWN PLEADING, PRODUCTION, AND WITNESSES ESTABLISH THAT RESPONSIVE COMMUNICATIONS EXIST AND WERE NOT PRODUCED

A. The witnesses identified specific records that existed and were not identified in the production.

Del Monte testified that charges were entered in the Magaya file, that every container had a delivery order, that delivery orders were generated in Magaya and emailed to the trucker, and that written routing changes were communicated by email. Del Monte Dep. Tr. 66:12–22, 67:2–21, 68:3–6, 69:3–11. He testified that communications with DHY included the arrival notice, invoice, payment receipt, and container-availability inquiries; that communications with terminals occurred electronically; that he communicated with SeaBlue and iHotel; and that he communicated with the warehouse manager by email. (Id. at 73:24–74:18; 79:1–80:18; 81:6–82:7).

Sarmiento independently testified that a routing change or diversion would be reflected in Outlook email and that every communication with the trucking company was by email, with a revised bill of lading ordinarily required when the delivery address changed. (Sarmiento Dep. Tr. 33:6–20; 55:1–18).

These are not speculative categories. TSS's employees described them under oath. Respondent did not identify a complete production of the delivery orders, amended delivery orders, transmitting emails, arrival notices, terminal records, trucker communications, Magaya files, invoices, payment records, or proof-of-delivery records for both containers.

B. Respondent's verified pleading and its custodian eliminate any uncertainty that responsive communications exist.

The July 27 Order states that "it is unclear that material documents may exist that were not yet produced," and that if any responsive documents were withheld, "it is unclear that they would materially advance the matter for Complainant." (July 27 Order, at 5–6). Respondent's own Verified Answer, filed July 8, 2025, refutes both propositions.

Respondent's counsel had already represented on the record, before the April 1 Order, that the relevant operational records existed and were in Respondent's possession:

MR. RAAB: Not only have we produced some correspondence on the two shipments, at issue, we produce bills of lading advisories.

Drayage documents we also on March 5th and in an act of good faith.

Faith, even though it it was our contention that we didn't have to produce them.

We produce backup documentation for those shipments that we withheld, including the actual invoice and all the backup documentation, including bills of lading where applicable, which are not in the name of of my clients.

March 19 Recording at 10:37 (emphasis added by Complainant; automated transcript reproduced verbatim).

That representation defeats the central factual premise of the July 27 Order. Respondent's counsel resolved that supposed uncertainty in March by representing on the record that correspondence, drayage documents, an invoice, backup documentation, and bills of lading not issued in Respondent's name existed and were in Respondent's possession. RFP No. 7 compelled the responsive records reflecting duties, drayage, warehousing, storage, and port charges Respondent paid or advanced on FormuKleen's behalf. Yet the July 27 Order neither identifies where those records were produced nor separately finds compliance with RFP No. 7.

The same representation exposes the search defect. The records counsel identified, including bills of lading not issued in Respondent's name, necessarily implicated third-party sources such as the drayage provider, terminal, carriers, and invoicing parties. But the Villena Declaration lists only two third-party email addresses and identifies no drayage provider, no terminal, and no third-party invoicing party among its custodians or search terms. (Villena Decl. ¶¶ 13, 15.) Counsel's on-the-record representation that Respondent possessed those records cannot be reconciled with a Declaration describing searches that would not have reached the identified third-party sources. The Order relied on the Declaration without confronting the contradictory representation already in the record.

C. Respondent admitted conduct that necessarily generated communications Complainant never received.

At the June 4 conference, Respondent stated that it had treated communications copied to FormuKleen as outside what Complainant sought, and represented that the communications it had been trying to provide were the ones without FormuKleen on them, of which "there aren't that many." (June 4 Recording at 27:17-29:07). Respondent therefore defined the operative category itself. The Verified Answer establishes that the category is not small, and that it has not been produced.

Respondent admits that container CHSU4047424 "was pulled and held at our trucking partner's yard until February 25." (Verified Answer, at 5). It admits that it "[p]aid port storage charges on FormuKleen's behalf," that on April 14-16 "TSS paid port storage fees and transferred the container to its warehouse," and that following clearance "the cargo was redirected to Respondent's warehouse." (Verified Answer, at 4, 6, 2). Each of those acts required Respondent to deal with a third party: the trucking partner that received and held the container, the terminal that accepted the storage payment, and the drayage provider that executed each movement.

Respondent's own witness confirmed that Complainant was not included in exactly those exchanges. Asked whether FormuKleen was copied when he contacted the port to pay the terminal fee, Mr. Del Monte answered: "no, I don't include them." (Del Monte Dep. Tr. 84:25-85:2). He testified that when he contacted the trucker, FormuKleen was notified separately, "on a separate email." (Del Monte

Dep. Tr. 85:5-8). More generally: “Most of the time, FormuKleen wasn’t copied on a lot of emails.” (Del Monte Dep. Tr. 118:2-4).

He confirmed the communications exist and remain retrievable. Asked whether it was plausible that Respondent warehoused cargo, facilitated trucking, and cleared customs without a single third-party email, he answered: “Of course there are emails.” He then identified them: “There’s my email telling the driver to pick up the container at the port and to bring it to the warehouse”; the customs entry communications; and the message sending the warehouse “a copy of the packing list and the delivery order.” (Del Monte Dep. Tr. 119:13-120:5). Asked whether they were accessible: “Emails are accessible.” (Del Monte Dep. Tr. 120:6-11). Asked whether the third-party communications Complainant was not party to had ever been given to Complainant, “either previously or when required for this case,” he answered: “I did not do it, no.” (Del Monte Dep. Tr. 121:8-12).

Respondent’s verified pleading admits the operational acts. Respondent’s custodian confirms that those acts generated emails, that Complainant was not copied on them, that they remain accessible, and that they were never turned over. On this record the existence of unproduced responsive communications is not unclear. It is admitted.

D. Respondent’s verified admissions show why those records bear directly on assumption of responsibility.

The July 27 Order identifies assumption of responsibility as the remaining merits question. Respondent has nevertheless admitted under verification that it acted as the drayage provider, customs broker, and warehouse operator; caused CHSU4047424 to be pulled and held at its trucking partner’s yard; paid port storage charges; transferred BSIU8431017 to its own warehouse; redirected cargo following customs clearance; asserted more than \$40,000 in handling, storage, brokerage, and inland-transport charges; fronted customs duties; coordinated release; absorbed trucking and handling costs; and claimed possession as warehouse operator and bailee. (Verified Answer, at 1-9).

Those are admissions that TSS selected where the containers went after discharge, engaged and instructed the drayage provider, paid the terminal, incurred or advanced transportation-related charges, took custody, and controlled release. The contemporaneous delivery orders, trucker instructions, warehouse communications, terminal records, invoices, receipts, and Magaya audit histories are therefore not cumulative. They are the direct evidence of who exercised operational control and assumed responsibility for the movement from receipt to destination.

E. The admitted conduct corresponds to the services identified in 46 C.F.R. § 515.2(k).

The Commission’s regulations identify, as services usually provided by an NVOCC, the “[p]ayment of port-to-port or multimodal transportation charges”; “[a]ssisting with clearing shipments in accordance with U.S. government regulations”; “[a]rranging for inland transportation and paying for inland freight charges on through transportation movements”; “[c]oordinating the movement of shipments between origin or destination and vessel”; and “[e]ntering into arrangements with origin or destination agents.” (46 C.F.R. § 515.2(k)(2), (5), (6), (8), (10)). Nothing in § 515.2(k) requires an entity to own the truck or to perform the drayage itself; the regulation identifies arranging inland transportation and paying inland freight charges as the relevant conduct. Respondent’s verified admissions describe conduct corresponding to several of those functions and bearing directly on the nonexclusive § 515.2(k) inquiry.

F. Complainant is not speculating that documents exist.

Respondent's opposition argues, and the July 27 Order accepts, that Complainant merely assumes additional documents "must" exist. That characterization does not survive the Verified Answer. Complainant does not infer the existence of communications from a general premise about recordkeeping. Respondent has sworn to what it did: it directed a container to a named trucking partner's yard, paid a terminal, engaged and instructed a drayage provider, transferred cargo to its own warehouse, notified the consignee of storage obligations, and coordinated release. Those acts are not performed without communicating with the yard, the terminal, and the trucker. The inference runs from Respondent's own verified account of its conduct, not from Complainant's assumptions.

The two conclusions in the July 27 Order therefore cannot stand together. The Order cannot find it "unclear that material documents may exist" when Respondent's verified pleading admits the operational acts and Respondent's custodian confirms the resulting emails exist, are accessible, and were never produced. And it cannot find the assumption-of-responsibility element unresolved while treating as cumulative the contemporaneous records of the very conduct Respondent has admitted under oath.

7. THE JULY 27 SEARCH-TERM RATIONALE IS NOT SUPPORTED BY THE DECLARATION OR THE RECORD

A. The Order relied on a Qichen search the Declaration does not list.

The Villena Declaration shows that search terms Respondent used included container numbers, invoice numbers, bill of lading numbers, "FormuKleen," and other terms...It is difficult to imagine there being relevant third-party communications that would be captured by a search for "Qichen" (who issued one of the house bills of lading) that were not otherwise captured.

July 27 Order, at 5.

The Declaration does not say that Outlook or Magaya was searched for "Qichen." It lists FormuKleen names and addresses, two third-party addresses, invoice numbers, master-shipment numbers, container numbers, and bill-of-lading numbers. (Villena Decl. ¶¶ 14-15). It does not list Qichen, DHY, Topsealand, iHotel, Pomtoc, South Florida Container Terminal, Greta, Yami, or any other relevant parties. The conclusion that a Qichen search captured the missing communications rests on a search the sworn Declaration does not describe.

B. No evidence established that the listed searches were equivalent to third-party-name and custodian searches.

The record contains no evidence about TSS's indexing of email bodies, attachments, aliases, threads, metadata, scanned documents, or Magaya fields. It contains no evidence that searching a container number, invoice number, bill-of-lading number, or FormuKleen would return the same records as searching the names and addresses of the third parties actually involved. At the June 4 conference, TSS said it later ran another targeted search using the third-party list from the enforcement motion. (June 4 Recording at 30:48-31:54). The need for a different search using different terms disproves any assumption that the first searches were necessarily coextensive. Respondent's own opposition confirms the point: it attached documents from Thunder Container Transport, Inc., a drayage provider whose name appears nowhere among the terms, addresses, or custodians the Declaration describes. See Section 3.E above.

Most importantly, TSS admitted that it treated emails copied to FormuKleen as outside the category Complainant wanted. That incorrect rule would exclude responsive communications no matter how well the other terms were chosen. The July 27 Order did not address it.

C. A search description is not proof that the ordered documents were produced.

The April 1 Order imposed two separate obligations: produce responsive documents and provide a declaration describing the searches. (April 1 Order, at 13-14). The July 27 Order treated the Declaration as though a sworn statement that searches occurred established that the resulting production was complete. It does not. A party can run searches and still omit custodians, use incomplete terms, exclude responsive copied emails, fail to collect attachments, or fail to produce the records returned. The compliance question required comparison of the ordered categories to the actual production.

8. RFP NO. 7 WAS COMPELLED AND WAS NEVER SEPARATELY ANALYZED OR FOUND SATISFIED

RFP No. 7 was not incidental. It required records of duties, drayage, warehousing, storage, port-related, and other charges TSS paid or advanced on FormuKleen's behalf. The April 1 Order granted the Motion to Compel as to RFP No. 7 because the services TSS provided and how it conducted its operations were relevant to whether it acted as an NVOCC. (April 1 Order, at 10-11, 14).

The deposition record identified specific RFP No. 7 records. Del Monte testified that charges were entered into the Magaya file; that terminal fees were paid; that DHY sent invoices, TSS made payments, and TSS sent receipts; and that the shipment files contained the operational and payment records. (Del Monte Dep. Tr. 66:3-16; 67:6-18; 73:5-18; 74:1-18).

The July 27 Order did not identify a complete production of third-party invoices, proofs of payment, drayage charges, terminal charges, warehousing charges, or records showing who incurred and paid those expenses for the two containers. It did not separately analyze RFP No. 7 or find that TSS complied with it. Instead, it stated that TSS had already been found to have provided inland transportation, warehousing, customs clearance, and advanced fees, and then treated additional records as potentially cumulative. (July 27 Order, at 5). But those records do not merely show that services occurred. They show who retained the service providers, who received the invoices, who paid them, who directed performance, and whether TSS assumed responsibility for the movement. RFP No. 7 cannot disappear because the July 27 Order believes some general points have already been established.

9. THE COMMISSION CANNOT REFUSE TO ENFORCE AN ORDERED PRODUCTION BY PREDICTING THAT THE UNSEEN EVIDENCE MAY NOT HELP ENOUGH

The July 27 Order's materiality analysis must be read in full because each step depends on the next:

Moreover, aside from the experience of Complainant's representative...and Complainant's vigorous, repeated assertions, it is unclear that material documents may exist that were not yet produced.

Returning to the central inquiry in this case, whether Respondent acted as an NVOCC in relation to the two containers at issue, I concluded eleven months ago that Respondent provided inland transportation, warehousing, and customs clearance, as well as advanced some fees...To the extent Respondent failed to produce anything responsive to RFP Nos. 4

and 7, it appears that most, if not all of it, would only lend further support regarding points Complainant already won.

What is not known currently is if Respondent “assume[d] responsibility for the transportation from the port or point of origin to the port or point of destination[.]”...Complainant asserts that documents showing communications with third parties “would establish the role TSS actually performed in the transportation chain[.]” But again, it appears likely that substantially all material third-party documents would have been captured by the searches described in the Villena Declaration.

July 27 Order, at 5.

In sum, I find that Complainant has not met its burden of showing that Respondent’s productions were incomplete, and that if any responsive documents were not produced, it is unclear that they would materially advance the matter for Complainant.

July 27 Order, at 6.

The Order’s reference to “the experience of Complainant’s representative” and Complainant’s “vigorous, repeated assertions” serves no adjudicative purpose and improperly belittles a party’s presentation of a serious evidentiary deficiency. This is particularly inappropriate because the Presiding Officer invoked his own experience to make precisely the same point: “I have been doing this work for a while now, and, as I have seen,” an international container shipment generates “100 emails” and potentially involves “a dozen parties.” June 4 Recording at 27:17–29:07.

The Order also strips Complainant’s representative’s experience from both contexts in which it arose. The deposition statement the Order quoted was an answer to Del Monte’s challenge–“Are you familiar with the delivery order? Do you know what one looks like?”–not an attempt to prove through personal experience that additional records existed. Del Monte Dep. Tr. 19:20–23.

At the June 4 conference, the Presiding Officer had already concluded that TSS’s admitted transportation-related functions should have generated substantial documentation. He stated that even a delivery agent produces “a lot of documents,” noted that TSS had admitted facilitating trucking and directing the containers to another warehouse, and said that “we know that at least there have to be some communications.” He then asked Complainant directly: “And, Ms. Dandan, you’re saying they’re missing?” June 4 Recording at 34:55–36:36. Complainant’s representative answered that question by describing the deficient production, explaining that TSS’s admitted conduct made the absence of those communications implausible, and referencing her twenty years moving ocean freight to confirm the operational point the Presiding Officer had just made. She expressly returned the point to him: “It’s as Your Honor said in one of his orders.” Id. at 36:36–38:57. The Presiding Officer then acted on that answer by questioning TSS about arrival notices and trucker communications and rejecting its unexplained reliance on “targeted searches.” Id. at 38:57–40:38.

Complainant’s representative’s experience was therefore neither a substitute for evidence nor an unsolicited personal assertion. In the deposition, it was invoked solely to answer Del Monte’s question about her familiarity with a delivery order; at the conference, it was invoked while directly answering the Presiding Officer’s question about whether the communications he agreed had to exist were missing. Both statements were responsive to the matters being discussed and grounded in TSS’s admitted conduct

and the production before the Commission. The Order identifies no basis for invoking the Presiding Officer's own experience to recognize that the missing communications should exist while later reducing Complainant's representative's directly relevant industry experience and responsive explanations to mere experience and "vigorous, repeated assertions."

The July 27 Order's reasoning contains several legal and logical errors. Relevance and discoverability had already been decided in the April 1 Order. The Commission did not modify or vacate that Order. The June 5 Order then commanded all third-party communications for the two shipments. Enforcement therefore turned on obedience, not a new prediction about whether the evidence would be cumulative.

The Order also used TSS's withholding to protect TSS. Because the records were not produced, Complainant could not show every fact they contain. Because Complainant could not show the contents of unseen records, the Order concluded that they might not materially advance the case. That makes nonproduction self-validating.

The materiality conclusion is also internally inconsistent. The Order identifies assumption of responsibility as the remaining question. Delivery orders, amended delivery orders, transmitting emails, trucker instructions, warehouse communications, terminal records, invoices, receipts, payment records, and Magaya audit histories are the contemporaneous evidence of who selected the destination, authorized pickup, hired and directed the trucker, controlled delivery, incurred the charges, paid the providers, and controlled release. Those records go directly to assumption of responsibility. The Presiding Officer cannot identify that issue as unresolved and then decide-without seeing the ordered operational record-that the record probably would not help resolve it.

The Presiding Officer determines whether discovery is relevant and proportional. Complainant determines how to use responsive evidence to prove its claims. The Commission had already decided that these categories were discoverable. It could not replace production with its own prediction that Complainant might already have enough evidence or that the missing records might add only cumulative support.

10. THE D.C. CIRCUIT HAS HELD THAT COMPELLED DISCOVERY DETERMINATIONS ARE BINDING AND THAT THE COMMISSION MUST ADDRESS MATERIAL RECORD EVIDENCE

Two recent decisions of the United States Court of Appeals for the District of Columbia Circuit reviewing final Commission orders bear directly on the principles implicated by the July 27 Order.

A. A party may seek review of a discovery determination but may not disregard it.

In *MSC Mediterranean Shipping Co. S.A. v. Federal Maritime Commission*, 141 F.4th 222 (D.C. Cir. 2025), the court reviewed a default judgment entered after a respondent repeatedly refused to produce compelled discovery because it continued to dispute the viability of the complainant's claims and the relevance of the requested material. The respondent maintained that it had already produced what it believed to be the relevant documents, notwithstanding prior rulings that additional discovery was relevant, central to the complainant's claims, and required to be produced. *Id.* at 243-44.

The D.C. Circuit rejected that posture. It held that the ALJ's and Commission's adjudicatory determinations "are not opinions for [a respondent] to take or leave, as it prefers." *Id.* at 244. A party may seek review of those determinations through the procedures available to it, but it "cannot simply disregard

them or use them as grounds for disobeying additional Commission orders.” Id. (citing *Lever Bros. Co. v. United States*, 981 F.2d 1330, 1332 (D.C. Cir. 1993)).

That principle bears directly on the posture here. Respondent litigated its relevance and scope objections to RFP Nos. 4 and 7. The April 1 Order rejected those objections as “off-mark,” and granted the Motion to Compel in part. The June 5 Order then stated expressly that Respondent “is still required to produce all third-party communications related to the two subject shipments.” Respondent did not obtain modification or reversal of either production command.

The July 27 Order likewise did not expressly modify or vacate those commands. It did not find that Respondent had produced all records required by RFP No. 7 or all third-party communications required by the June 5 Order. Instead, it reasoned that, to the extent responsive records remained unproduced, they might reinforce matters Complainant had already established and might not materially advance the case. But so long as the April 1 and June 5 production commands remained operative, compliance could not be rendered unnecessary through a retrospective prediction about the likely evidentiary value of documents Respondent had never produced. The issue presented by the enforcement motion was whether Respondent obeyed the Orders, not whether the compelled evidence could now be treated as optional in hindsight.

Complainant recognizes that MSC affirmed a default judgment after prolonged and willful noncompliance and that default as a discovery sanction requires willfulness, bad faith, or fault. See id. at 241 (citing *Washington Metropolitan Area Transit Commission v. Reliable Limousine Service, LLC*, 776 F.3d 1, 4 (D.C. Cir. 2015)). Complainant does not contend that MSC requires default here. It is cited for the narrower proposition that an adjudicated production requirement remains binding unless modified or reversed, and that a regulated party may not substitute its own assessment of relevance or sufficiency for the operative discovery order.

B. The centrality of withheld discovery establishes prejudice; it does not excuse production.

In reviewing the default sanction in *MSC*, the D.C. Circuit applied the three considerations identified in *Webb v. District of Columbia*, 146 F.3d 964, 971–75 (D.C. Cir. 1998): prejudice to the party required to present its case without the ordered discovery; the burden on the tribunal required to address delays caused by noncompliance; and the need to deter bad-faith conduct. *MSC*, 141 F.4th at 241. Although that framework arose in the context of default, the court’s description of prejudice is directly relevant to whether immediate enforcement or interlocutory review is necessary here.

The Commission in *MSC* concluded that lesser measures would not cure the prejudice because the discovery was sufficiently broad and central that its absence “significantly limited [the complainant’s] ability to make its case.” Id. at 245. The D.C. Circuit sustained that reasoning. Thus, the closer withheld discovery lies to a disputed and unresolved issue, the greater the prejudice caused by requiring a party to proceed without it.

Here, the July 27 Order identifies assumption of responsibility for the transportation as the principal unresolved issue. Delivery orders, amended delivery orders, transmitting emails, trucker instructions, warehouse communications, terminal communications, third-party invoices, proofs of payment, and Magaya shipment histories are contemporaneous evidence of who selected the destination, authorized pickup, directed the trucker, incurred and paid transportation expenses, controlled delivery, and authorized release. Those records bear directly on the issue the Order says remains unresolved.

The Order's observation that some missing records might reinforce facts already established—such as Respondent's involvement in trucking, warehousing, customs clearance, and advancing charges—does not address the separate records showing the nature and extent of Respondent's authority over the transportation. Nor does it justify requiring Complainant to proceed without records that may show whether Respondent selected providers, issued instructions, controlled changes in destination, paid the providers, and assumed responsibility for delivery.

The prejudice is concrete. As of August 9, 130 days, more than four months, have elapsed since the April 1 Order. Respondent received an extension to make its production and declaration complete and compliant, further opportunities to supplement, additional conferral, a status conference, further searches, and the depositions the Presiding Officer directed Complainant to take to establish a clear compliance record. Those measures consumed Complainant's time and resources but did not result in an identified production of the compelled categories. Complainant is now being required to brief the merits without the evidence those procedures were intended to obtain. Although the circumstances are not identical to the prolonged default record in MSC, the relevant form of prejudice is the same: a party is being required to present its case without discovery previously determined to be relevant and required.

C. The Commission must address material evidence and provide a rational explanation connecting the record to its conclusion.

In *Evergreen Shipping Agency (America) Corp. v. Federal Maritime Commission*, 106 F.4th 1113 (D.C. Cir. 2024), the court vacated a final Commission order because the Commission failed to respond meaningfully to material facts and arguments and did not provide a rational explanation connecting the record to its conclusion. *Id.* at 1117-18. The court held that it was arbitrary and capricious for the Commission to commit itself to a “circumstantial, fact-bound inquiry” and then “jettison all but its favorite factor” when applying that inquiry. *Id.* at 1118.

Evergreen reviewed a final merits decision under the Administrative Procedure Act, not an interlocutory discovery ruling. Complainant therefore does not cite it as establishing the standard governing reconsideration or as independently dictating reversal of the July 27 Order. It is relevant because it states the standard of reasoned decision making that applies to review of Commission action and because the same type of factual and logical defects appear in the July 27 analysis.

The April 1 Order recognized that determining whether an entity acted as an NVOCC requires a fact-intensive inquiry into the role the entity actually performed, including how it interacted with third parties and conducted its operations. The July 27 Order then evaluated whether unproduced third-party communications and payment records would materially advance that inquiry. In doing so, however, it did not address material portions of the record contradicting its conclusion.

The specific respects in which the July 27 Order departed from that standard—its treatment of the deposition testimony, its reliance on a search term absent from the sworn Declaration, its failure to reach RFP No. 7, and its failure to decide compliance with either operative production command—are set out in Section 14 below. Under the reasoned decision making principles articulated in *Evergreen*, those omissions and contradictions warrant reconsideration before the merits are adjudicated on the resulting incomplete record.

11. THE JULY 27 ORDER MATERIALLY MISQUOTES THE STATUTORY ELEMENT IT TREATS AS DISPOSITIVE

The July 27 Order rests its denial on a single unresolved element. It materially misquotes that element, and the misquotation raises the burden Complainant must meet.

A. The Order substitutes “origin” for the statutory term “receipt.”

The July 27 Order did not paraphrase the statute. It placed the element in quotation marks, altered it, and attributed the result to the United States Code: Respondent “assume[d] responsibility for the transportation from the port or point of origin to the port or point of destination[.]” (July 27 Order, at 5, citing 46 U.S.C. § 40102(7)(ii)) (emphasis added). The bracketed changes to tense and punctuation show that the Order was presenting edited statutory language as a direct quotation; the replacement of “receipt” with “origin” was neither bracketed nor otherwise disclosed. The governing provision, 46 U.S.C. § 40102(7)(A)(ii), reads “from the port or point of receipt to the port or point of destination.” In the same parenthetical, the Order quoted *Ali-Grimaldi v. UTrade Logistics, LLC*, Dkt. No. 2040(I), 2026 WL 1190416, at *14 (SCO Apr. 22, 2026), notice not to review (FMC May 26, 2026), correctly: “The record lacks any evidence showing that Respondent assumed responsibility for the transportation ‘from the port or point of receipt to the port or point of destination.’” (July 27 Order, at 5) (emphasis added). The correct word and the substituted word therefore appear in the same sentence of the Order.

The April 1 Order quoted that provision correctly, setting out the statutory definition in full, including subsection (ii) as “assumes responsibility for the transportation from the port or point of receipt to the port or point of destination.” (April 1 Order, at 4).

B. The misquotation is not cosmetic; it changes what Complainant must prove.

“Point of origin” imports a starting point at the place where the cargo began its journey. Read that way, Complainant would have to prove responsibility beginning in China—a showing the statute does not require and that Respondent says Complainant cannot make.

“Point of receipt” is not synonymous with “point of origin.” At minimum, the statutory text does not confine the inquiry to responsibility beginning where the cargo originated in China. Respondent’s admitted pre- and post-arrival operational conduct and the withheld communications therefore bear directly on the correctly stated statutory element. There is no statutory requirement that a respondent control the entire international movement before the element can be satisfied.

By materially misquoting “receipt” as “origin,” the July 27 Order applied a heightened version of the element, one contradicted by its own earlier order, by the statute, and by the decision it cites in support.

C. Section 515.2(k) is illustrative, not a limitation.

The regulation identifying NVOCC services opens by stating that such services “*may include, but are not limited to,*” the enumerated functions. (46 C.F.R. § 515.2(k)). It is evidence of what NVOCC conduct looks like. It does not add elements to 46 U.S.C. § 40102(7), and no single enumerated service is a prerequisite. The Commission has held that whether an entity acted as an NVOCC is a fact-intensive inquiry in which documentary labels are not determinative and the absence of a bill of lading is not dispositive. (April 1 Order, at 6-7, citing *Worldwide Relocations*, 2012 WL 11914713, at *5, and *Augst v. Transparent Logistics LLC*, 2026 WL 657092, at *16-17).

The April 1 Order used the regulation in exactly that way. Having quoted § 40102(7) in full, it turned to *Worldwide Relocations* for the propositions that the inquiry is fact-intensive, that documentary labels are not determinative, and that resolution requires examining the entity's conduct-and only then set out § 515.2(k) as identifying "services that are usually provided by an NVOCC." (April 1 Order, at 4-6). The regulation entered the analysis as evidence bearing on the statutory element, not as a checklist of independent requirements, and the enumerated services were treated as examples of conduct from which the element may be found. The July 27 Order's treatment of the same element should be measured against that framework and against the statutory text the April 1 Order quoted correctly.

D. Under the element as the statute states it, Respondent's admissions go directly to the question.

Respondent has admitted under verification that it received both containers from the terminal, directed CHSU4047424 to its trucking partner's yard and BSIU8431017 to its own warehouse, paid the port and terminal charges, engaged and instructed the drayage provider, fronted customs duties, took custody as bailee, and controlled release to the consignee. (Verified Answer, at 1-9). Those are admissions that Respondent assumed responsibility for the transportation.

Complainant does not ask the Presiding Officer to decide the merits on this motion. The point is narrower and bears directly on enforcement: the element as correctly stated is one to which the withheld third-party communications are directly probative, and the Order's conclusion that those communications "would only lend further support regarding points Complainant already won" was reached while the element was misstated in a manner that placed the decisive conduct outside the period Respondent's own admissions describe.

The Presiding Officer has already found much of the conduct relevant under 46 C.F.R. § 515.2(k). The July 27 Order states that he concluded eleven months ago that Respondent provided inland transportation, warehousing, and customs clearance and advanced some fees. Respondent's Verified Answer also admits that it paid port and terminal charges. Section 515.2(k) identifies, among other NVOCC services, payment of port-to-port or multimodal transportation charges, assisting with clearing shipments under United States government regulations, arranging inland transportation and paying inland freight charges on through movements, and coordinating movement between origin or destination and vessel. Because the regulation states that NVOCC services "may include, but are not limited to" those functions, no single listed service is indispensable and the absence of other listed services is not disqualifying. Respondent's denials, that it did not arrange the international carriage, issue the ocean bills of lading, or serve as the ocean carrier, address functions the regulation does not require in every case.

Five days before the July 27 Order, Respondent described its own role as "limited to providing customs brokerage services, coordinating drayage following the cargo's arrival in the United States, and providing warehouse services," and quoted its statement at the June 4 conference that it "strictly acted as a customs broker... and the trucking and the warehouse and that's all we did in these two shipments." Respondent's Opposition, at 3. Respondent offered that description as a defense. It reads as one only if the element begins at the point of origin, because Respondent did not perform the international carriage. Stated as the statute states it, Respondent has described receiving the containers and assuming responsibility for their transportation to their destination. The July 27 Order's substitution is therefore not a stray word. It is what permits Respondent's own account of its conduct to read as a denial of the element rather than a description of it.

The misstatement also compounds the disclosure problem addressed in Section 5. The Order simultaneously raises the showing Complainant must make and identifies for Respondent the categories of records that would resolve the element, while leaving those records unproduced.

E. In the same passage, the Order materially truncates the Complaint’s allegation concerning Respondent’s capacity.

The same passage materially truncates the Complaint. The Order characterizes the allegation as follows: “Complainant alleged that it engaged Respondent to act as a ‘freight forwarder and customs broker. Although the parties never executed a written contract, a consistent course of dealing developed in which TSS coordinated transportation and logistics services on FormuKleen’s behalf,’ and FormuKleen paid the invoices.” July 27 Order, at 5 (quotation marks as in original). The Complaint alleges: “To facilitate those shipments, it engaged TSS to act as its Ocean Transportation Intermediary (‘OTI’), primarily in the capacity of a freight forwarder and customs broker.” Complaint, at 3. By beginning its quotation at “freight forwarder,” the Order omitted the Complaint’s express allegation that TSS was engaged as an OTI and did not indicate the omission.

An “ocean transportation intermediary” is statutorily defined as “an ocean freight forwarder or a non-vessel-operating common carrier.” 46 U.S.C. § 40102(20). The language removed from the Complaint’s allegation therefore includes the statutory category that expressly encompasses NVOCC status.

That allegation did not classify Respondent exclusively as an “ocean freight forwarder” under 46 U.S.C. § 40102(19). It expressly alleged that Respondent acted as FormuKleen’s “Ocean Transportation Intermediary (‘OTI’)” and then used the unmodified phrase “freight forwarder” when describing Respondent’s services. The statutory term is “ocean freight forwarder,” not “freight forwarder,” and the latter phrase did not negate the Complaint’s express allegation that Respondent acted as an OTI—a statutory category that includes an NVOCC.

Nor did the Complaint rest on labels alone. It alleges that Respondent is a Commission-licensed NVOCC and ocean freight forwarder and invokes the Commission’s jurisdiction over Respondent in both capacities. Complaint, at 1–2. It further alleges that Respondent coordinated transportation and logistics services; invoiced international-freight, customs-clearance, and inland-delivery charges; picked up and diverted the containers; transported them to its own facility; took physical custody of the cargo; controlled its delivery and release; and performed regulated OTI services. *Id.* at 3–6, 12–14, 19.

The truncation and the statutory substitution operate in the same direction. The first removes the pleaded statutory category that includes NVOCC status; the second shifts the governing inquiry from the point of receipt to the point of origin, focusing the analysis on an international movement no party contends Respondent performed. Neither alteration was acknowledged.

12. AFTER ALL OF THE PROCEDURAL DETOURS, THE DISPOSITIVE FACT REMAINS: RESPONDENT DID NOT PRODUCE THE ORDERED DOCUMENTS, AND THE MISSING COMMUNICATIONS BEAR DIRECTLY ON THE ONLY NVOCC ISSUE THE JULY 27 ORDER IDENTIFIES AS UNRESOLVED

Everything else aside, the compliance question is straightforward.

The Commission ordered Respondent to supplement its production of RFP Nos. 4 and 7 on April 1. After every asserted scope dispute had been addressed, the Commission stated again on June 5:

“Respondent is still required to produce all third-party communications related to the two subject shipments.”

June 5 Order at 2.

Respondent did not produce those communications.

The enforcement proceeding instead became consumed by definitions, search terms, Magaya configuration, the meaning of the word “search,” Respondent’s alleged misunderstandings, and predictions concerning the possible value of unseen evidence. None of those subjects changes the operative obligation.

Respondent was not ordered merely to understand the requests. It was not ordered merely to conduct some searches. It was not ordered merely to describe its efforts. It was ordered to produce the documents.

Whatever disagreement may exist over terminology or methodology, it does not answer the dispositive question: Where are the communications with the known third parties?

The later deposition testimony confirmed the point. Del Monte admitted that ordinary third-party communications existed, and admitted that those communications had not been provided to FormuKleen.

Respondent’s Verified Answer makes the July 27 Order’s conclusion still more difficult to reconcile with the record.

The exhibit reproduced on page 6 of the Verified Answer is particularly revealing. It accompanies TSS’s admission that it paid the port-storage charges and transferred the container to its warehouse. The depicted email states that TSS’s accounting department instructed that the container be brought to TSS’s warehouse and that the goods would be released after the account was brought current. That is Respondent’s own exhibit documenting operational direction, financial responsibility, transfer, possession, and control of release.

These are not merely Complainant’s allegations. They are Respondent’s verified factual admissions. At minimum, those admissions confirm that Respondent performed the very operational acts to which the withheld communications directly relate. Respondent’s legal characterization that those admitted acts fell outside the Shipping Act does not erase the acts themselves or make the contemporaneous evidence of them cumulative.

More importantly for the present motion, the missing third-party communications are the most direct contemporaneous evidence bearing on the remaining issue identified by the July 27 Order. Communications between TSS and DHY Shipping Line, Ningbo Qichen, Dolphin Logistics, Topsealand, SeaBlue, CMA CGM, the terminals, the truckers, and the warehouses would show:

- who obtained and transmitted release information;
- who selected or changed the destination;
- who generated and transmitted the operative delivery orders;
- who authorized pickup;
- who instructed the trucker;
- who paid or assumed the transportation charges;

- who directed movement to TSS's warehouse;
- who imposed the hold;
- who controlled release;
- who bore responsibility to FormuKleen if the movement failed; and
- what role TSS actually performed in the transportation chain.

Those are not documents that merely repeat "points Complainant already won." They are the most direct evidence of the only point the July 27 Order says remains unresolved.

The Order's two conclusions therefore cannot be reconciled:

The Commission cannot state that it remains unknown whether TSS assumed responsibility for transportation while simultaneously concluding that the unproduced communications documenting who directed, arranged, paid for, controlled, and bore responsibility for that transportation would not materially advance the case.

The contradiction extends beyond this discovery dispute. Complainant's motion for summary judgment was denied because determining whether Respondent acted as an NVOCC required a fact-intensive inquiry and further development of the record. Yet the July 27 Order now characterizes the withheld evidence as merely cumulative because it would "only lend further support regarding points Complainant already won," while simultaneously treating the statutory element as unresolved. If the existing record already establishes the material facts concerning Respondent's NVOCC role, that threshold issue should be resolved in Complainant's favor. If it does not, the contemporaneous records showing who directed, arranged, paid for, and controlled the transportation cannot be cumulative. Either way, Complainant cannot fairly be required to brief the merits on the same factual gap that justified denying summary judgment when Respondent has withheld the evidence ordered to fill that gap.

The July 27 Order does not identify the Bates ranges containing the missing communications. It does not find that all third-party communications ordered on June 5 were produced. It does not reconcile Respondent's production with the many participants, transactions, instructions, charges, delivery orders, and operational acts that Respondent itself admits occurred. It relies instead on descriptions of searches, an asserted misunderstanding, competing interpretations of testimony, and a prediction that substantially all material evidence probably was captured.

None of that is production.

A declaration stating that searches occurred is not production. A claim that records were reviewed is not production. An explanation that Respondent misunderstood the request is not production. A semantic disagreement over the word "search" is not production. An assertion that unproduced documents may be cumulative is not production. And a prediction concerning the possible value of unseen evidence cannot transform nonproduction into compliance.

Respondent was ordered to produce the documents. The transactions generated the documents. Respondent's employees identified the documents. Respondent's Verified Answer admitted the operational activities that necessarily generated the documents. The Presiding Officer concluded that the communications had to exist. Complainant identified the limited SeaBlue material actually produced. Neither Respondent nor the July 27 Order identified the missing communications in the production.

After months of conferral, successive law firms, two express production commands, a Commission status conference, further discovery, depositions, reporter and transcript expenses, and an amended enforcement motion, the dispositive fact remains unchanged: Respondent did not produce the documents the Commission ordered it to produce.

That fact requires enforcement. Respondent cannot withhold the communications needed to answer the exact issue the Presiding Officer has identified and then rely on the resulting absence of evidence to argue that assumption of responsibility remains unknown.

13. RESPONDENT RECEIVED 115 UNIQUE CALENDAR DAYS OF ADDITIONAL TIME APPLICABLE EXCLUSIVELY TO ITS OWN DEADLINES AND OBLIGATIONS, YET STILL DID NOT COMPLETE THE ORDERED PRODUCTION

The procedural record can be quantified without including any joint extension, reciprocal accommodation, or case-wide schedule modification. From the commencement of this proceeding through the July 27 Order, Respondent received 115 unique calendar days of additional time applicable exclusively to Respondent's own deadlines and obligations:

Respondent-Only Obligation	Additional Period	Additional Days
Response to Complainant's motion for summary judgment	August 1–5, 2025	5
Response to Complainant's motion to compel	March 17–23, 2026	7
Compliance with the April 1 discovery Order	April 16–July 27, 2026	103

Total unique Respondent-only calendar days: 115

This calculation counts each calendar day only once. It excludes every extension that applied jointly or generally to the proceeding. It also does not separately add Respondent's forty-four-day deferral in responding to the renewed enforcement motion because that period fell entirely within the 103-day period during which Respondent's April 1 compliance obligation remained outstanding.

The 115-day calculation also does not attempt to quantify the additional weeks Respondent consumed outside formal extension orders by refusing to cooperate meaningfully during required conferral. That uncounted delay includes the weeks spent attempting to obtain Respondent's position and edits concerning the protective order; repeated efforts to obtain substantive responses to discovery deficiencies; repeated requests for identification of responsive Bates ranges; conferral concerning missing third-party communications and improper redactions; and renewed conferral required after Respondent changed counsel and continued disputing obligations already resolved by the April 1 Order. Those periods are not separately added because they do not correspond to a single discrete extension and some overlap periods already counted. Their exclusion makes the 115-day calculation conservative: it captures only objectively identifiable Respondent-only additional time and does not capture the full delay caused by Respondent's refusal to cooperate, incomplete responses, shifting positions, and repeated failure to cure.

Of the 115 days, twenty-six were expressly granted extensions of Respondent-only deadlines: five days to oppose summary judgment, seven days to respond to the motion to compel, and fourteen days to comply with the April 1 Order. The remaining eighty-nine days followed the extended April 29

compliance deadline and continued through the July 27 denial of enforcement. During those eighty-nine days, Respondent alone remained responsible for completing the compelled searches and production, while the Commission repeatedly permitted additional searches, supplemental productions, conferral, clarification, and deferred adjudication without finding that Respondent had completed the production ordered on April 1 and reaffirmed on June 5.

A. Respondent received five additional days after failing to provide a timely justification for extending its summary-judgment response.

Respondent's opposition to Complainant's motion for summary judgment was due July 31, 2025. Respondent sought an extension to August 5, thereby obtaining five additional calendar days applicable solely to its own response obligation.

The July 30 Order initially denied the request because it had been submitted fewer than seven days before the deadline and Respondent had failed to provide the reasonable grounds required by 46 C.F.R. § 502.102(a). The Presiding Officer expressly found that, although counsel apologized for the late request, "Respondent provides no reason for the delay."

Respondent immediately sought reconsideration based on counsel's travel, the loss of a paralegal, and counsel's recent appearance. On July 31, the Presiding Officer reversed the prior ruling and granted Respondent the full extension. Respondent therefore received August 1 through August 5, five additional days for its own filing, after the Presiding Officer had already found that its original request was late and unsupported.

B. Respondent received seven additional days to oppose the motion to compel even though the Presiding Officer expressly found its request untimely.

Respondent's response to Complainant's motion to compel was due March 16, 2026. Respondent did not file a proper, timely motion identifying a specific extension and reasonable grounds for failing to request it in advance. Instead, it included a nonspecific request for additional time in a filing principally addressing page limits.

The March 17 Order expressly found: "Regarding Respondent's motion to extend response deadlines, it is untimely." The Presiding Officer nevertheless treated Respondent's filing as a sufficient extension request, supplied the length of Complainant's motion as the operative justification, selected March 23 as the new deadline, and granted Respondent seven additional days.

Those seven days, March 17 through March 23, were available only to Respondent for preparation of its opposition to Complainant's motion to compel. The extension was not joint, reciprocal, or case-wide. It was granted exclusively to Respondent notwithstanding the Presiding Officer's express finding that the request was untimely.

C. Respondent received 103 additional days beyond the original April 15 deadline to comply with the April 1 discovery Order.

The April 1 Order required Respondent, no later than April 15, 2026, to complete the ordered searches, supplement its production, answer Interrogatory No. 1, and serve a first-hand sworn declaration describing its repositories, custodians, searches, search terms, and whether any searches remained.

Only Respondent was subject to those obligations. Accordingly, every day added to that deadline was time provided exclusively to Respondent.

1. April 16 through April 29: fourteen formally granted days based on Respondent's change of counsel.

On April 10, Respondent substituted its second law firm and requested an extension from April 15 to April 29 so new counsel could learn the case, review the discovery, supervise collection, and ensure that Respondent's supplemental responses and declaration were complete and accurate.

Commission Rule 502.23(d) expressly provides that substitution of counsel or representative "will not, by itself, be considered good cause for delaying a proceeding." Respondent identified no external impediment to compliance. Its motion stated that the records were already being gathered. The asserted need for additional time arose from Respondent's voluntary counsel transition and new counsel's desire to review the file and supervise Respondent's compliance.

The April 13 Order acknowledged Rule 502.23(d) but granted Respondent the entire fourteen-day extension. It did not preserve the April 15 deadline even for the limited identification required by Interrogatory No. 1. Instead, the Order reasoned that any prejudice caused by the delay could later be addressed through additional discovery.

The April 14 Order denying reconsideration repeated that rationale and stated that the Presiding Officer was inclined to permit reasonable follow-up discovery if Respondent's delayed production created that need.

Respondent therefore received April 16 through April 29, fourteen additional calendar days applicable exclusively to its own compelled-discovery obligations, under a rule expressly stating that substitution of counsel alone does not constitute good cause for delay.

2. April 30 through July 27: eighty-nine additional days after the extended deadline without completed enforcement.

Respondent did not bring the ordered search-and-production process to a conclusion by April 29. The June 5 Order again confirmed that Respondent's obligation remained outstanding:

"Respondent is still required to produce all third-party communications related to the two subject shipments."

The Order also gave Respondent until June 10 to cure redactions. Thus, by June 10, Respondent had already received fifty-six additional days beyond the original April 15 compliance deadline and forty-two days beyond the extended April 29 deadline.

The June 5 Order further relieved Respondent of the obligation to respond immediately to the renewed enforcement motion. Respondent's response was deferred until after Complainant completed the depositions and amended the motion. The response ultimately became due July 22, forty-four days later than the otherwise applicable June 8 response date. That forty-four-day Respondent-only deferral occurred within the broader April 30 through July 27 period and is therefore not added again to the 115-day unique-calendar total.

The compelled-production dispute remained unresolved through July 27. The July 27 Order denied enforcement without finding that Respondent had produced all third-party communications required by the June 5 Order, all records responsive to RFP No. 7, or all other materials compelled by the April 1 Order.

Accordingly, Respondent received:

- fourteen additional days from April 16 through April 29 through an express extension;
- forty-two additional days from April 30 through June 10 while further searches, supplementation, conferral, and cure were permitted; and
- forty-seven additional days from June 11 through July 27 while enforcement remained unresolved and the production obligation remained outstanding.

The total is 103 days beyond the original April 15 compliance deadline, all applicable exclusively to Respondent's own discovery obligations.

D. The additional time was granted against a record containing repeated judicial findings, concerns, and warnings concerning Respondent's conduct.

The 115 Respondent-only days were not granted against a clean record of timely and complete compliance. The Presiding Officer repeatedly identified problems with Respondent's delay, cooperation, preservation, searches, production, and representations.

July 11, 2025. The Presiding Officer reminded the parties of their obligation to preserve evidence and cooperate with discovery and cited authority affirming default judgment and reparations against a carrier for discovery noncompliance.

July 18, 2025. The Presiding Officer rejected Respondent's mediation-based delay rationale as "not a persuasive reason" and found that Respondent had provided "no concrete or specific reason" why it could not comply with the existing deadlines.

July 30, 2025. The Presiding Officer found that Respondent sought an extension fewer than seven days before the deadline and "provides no reason for the delay." Respondent nevertheless received the requested extension on reconsideration the following day.

September 23, 2025. The Presiding Officer observed that Respondent's attorney claimed readiness to review a protective order but "does not indicate whether he agrees" to it and found it unclear how the motion was allegedly untimely.

November 13, 2025. Respondent was specifically warned that, "[i]f Respondent again fails to work cooperatively with Complainant," Complainant could renew its request with evidence of Respondent's failure to cooperate.

November 21, 2025. The Presiding Officer found that the parties had failed to cooperate "repeatedly since this case began" and that the failure had "real consequences in delaying the proceeding." He warned that later extension requests might not be granted absent extraordinary circumstances.

March 17, 2026. The Presiding Officer expressly found Respondent's response-extension request "untimely," but granted Respondent seven additional days.

April 1, 2026. The Presiding Officer stated that Respondent's discovery response "causes me concern that Respondent has kept poor records and/or spoliated evidence." He later stated that he was "greatly concerned" by Respondent's representation that documents would be produced "assuming they are still available," because the statement "suggests that Respondent may have spoliated evidence." Those concerns caused the Presiding Officer to require a first-hand declaration, complete search descriptions, completion of all remaining searches, and supplemental production.

May 14, 2026. After noting that the case had been pending almost a year and was not especially complex, the Presiding Officer stated: “I am concerned that Respondent has been squandering its time.”

May 21, 2026. The Presiding Officer found that Respondent “all but admits that its document searches to date have been deficient,” recognized that Respondent essentially acknowledged that it had not understood its obligations, and expressed concern that Respondent might be engaging in “gamesmanship” concerning its representative.

June 4, 2026. During the status conference, the Presiding Officer questioned why Respondent had produced so few communications for international container shipments that ordinarily generated substantial email traffic. He told Respondent that the phrase “targeted searches means nothing to me” without an explanation of what had been searched and how the system was organized. He identified possible deletion as “a concern” and expressly warned Respondent that discovery failures could support adverse inferences and default judgment.

June 5, 2026. The Presiding Officer expressly confirmed that Respondent was “still required” to produce all third-party communications concerning the two subject shipments.

June 11, 2026. Respondent was reminded that default judgment could be entered against a respondent that failed to cooperate with discovery and was encouraged to make its employees available without requiring an order.

June 12, 2026. The Presiding Officer again warned that default remained available for discovery noncooperation and stated that even if Respondent were correct on the disputed merits issue, “Respondent may nevertheless be subject to a default judgment if it fails to cooperate during discovery.”

July 14, 2026. While denying Complainant further discovery, the Presiding Officer nevertheless acknowledged: “I appreciate that Respondent has failed to produce materials timely, and may have engaged in gamesmanship.”

July 27, 2026. The Presiding Officer found that Respondent “apparently did not appreciate the full scope of RFP Nos. 4 and 7, as well as my April 1 Order, until late May 2026,” and again recognized that Respondent’s May filing “all but admitted its searches and production were deficient.”

The significance of this chronology is not that the Presiding Officer merely used critical language. It establishes that Respondent’s delay and production failures were repeatedly recognized by the tribunal itself. The Presiding Officer identified unsupported and untimely extension requests, repeated noncooperation, poor recordkeeping, possible spoliation, wasted time, deficient searches, late production, possible gamesmanship, and default-level discovery risk. He repeatedly warned Respondent of serious consequences.

The judicial record therefore forecloses any suggestion that Respondent’s deficiencies were unknown, speculative, or first identified after discovery closed. They were repeatedly identified while Respondent was continuing to receive additional time.

E. The additional 115 days prolonged the precise preservation and spoliation risk identified by the Presiding Officer.

The Complaint was filed on June 9, 2025. By the July 27, 2026 Order, 413 days had elapsed. The first express preservation warning was issued July 11, 2025; by July 27, 2026, 381 days had elapsed since that warning.

Throughout that period, Respondent remained in exclusive possession and control of its Outlook accounts, Magaya records, delivery orders, amended delivery orders, internal instructions, payment records, warehouse records, terminal records, and communications with the carriers, agents, terminals, truckers, warehouses, vendors, and other third parties involved in the subject shipments.

The April 1 Order did not raise an abstract concern. The Presiding Officer expressly stated that Respondent's responses caused concern that it had "kept poor records and/or spoliated evidence" and that its statement regarding documents being available suggested that it "may have spoliated evidence." The sworn declaration and completed-search requirements were imposed because Respondent's existing responses did not provide assurance that the relevant evidence had been preserved and searched.

Respondent then received 103 additional days beyond the original compliance deadline while the ordered production remained unresolved. During that period, Respondent conducted new searches after declaring that no searches remained, made rolling supplemental productions, asserted new interpretations of the April 1 Order, and continued controlling the evidence necessary to determine whether additional responsive records existed or had been lost.

Complainant does not need to prove in this motion that Respondent intentionally destroyed a specifically identified document. The prejudice exists because Respondent exclusively controlled the repositories and the evidence concerning preservation, deletion, alteration, overwriting, retention, and search methodology. Every additional day increased the period during which potentially responsive evidence could be deleted, overwritten, lost, altered, misplaced, or otherwise rendered unavailable.

The resulting evidentiary gaps are now impossible for Complainant to distinguish reliably among incomplete searching, continued withholding, deficient recordkeeping, inadvertent loss, intentional deletion, or other spoliation. Respondent cannot retain exclusive control over the evidence for more than a year, receive repeated warnings and 115 unique days of Respondent-only additional time, fail to establish complete compliance, and then obtain the benefit of uncertainty concerning what evidence remains.

F. The record establishes that further warnings and voluntary cure opportunities will not secure compliance.

The Commission has already attempted measures less severe than evidentiary relief:

- it reminded Respondent of preservation and discovery obligations;
- denied unsupported delay requests and instructed Respondent to comply;
- warned Respondent to cooperate;
- granted Respondent additional time;
- required a sworn declaration;
- required completion of all remaining searches;
- permitted rolling supplementation;
- required further conferral;
- held enforcement in abeyance;
- conducted a status conference;

- permitted further searches;
- directed depositions to develop the enforcement record;
- warned of adverse inferences;
- warned repeatedly of default;
- reaffirmed that production remained required; and
- permitted Respondent to oppose the amended enforcement motion.

The record cannot be dismissed as a routine discovery dispute or a series of neutral scheduling decisions. Respondent received 115 additional calendar days applicable exclusively to its own deadlines and obligations, including extensions granted after untimely requests, an extension based on a substitution of counsel that Commission Rule 502.23(d) expressly states is not itself good cause for delay, and 103 days beyond the April 15 compliance deadline through the July 27 Order. As of the filing of this motion on August 9, 130 days have elapsed since the April 1 Order, and Respondent's compelled production has remained incomplete for 116 days beyond the original compliance deadline. Throughout that period, Respondent retained exclusive possession and control of the evidence it had been ordered to search for and produce.

The disparity is confirmed by the relief actually afforded to Complainant. Throughout the entire proceeding, Complainant received only five calendar days of timing relief applicable exclusively to its own filings: three days for acceptance of its August 15, 2025 summary-judgment reply, originally due August 12, and two days for acceptance of its June 12, 2026 scheduling submission, originally due June 10². By contrast, Complainant's July 9 and July 15 requests for additional discovery necessary to investigate and cure the prejudice caused by Respondent's noncompliance were both denied. Excluding joint and proceeding-wide schedule modifications from both sides, the comparison is therefore five Complainant-only days against 115 unique Respondent-only days through July 27. The suggestion that both parties merely received comparable "reasonable extensions" obscures an enormous disparity in the amount of relief granted, the conduct necessitating that relief, and the consequences imposed when each party sought additional time.

The Commission's sudden insistence on finality and strict adherence to deadlines arose only after Respondent had received those 115 exclusive additional days and failed to complete the ordered production. When Respondent needed more time, deadlines were extended, untimely requests were excused, compliance remained open after the deadline, and enforcement was deferred. When Complainant sought the time necessary to remedy the prejudice caused by Respondent's delay, however, the expired schedule became controlling, further discovery was deemed too late, and the proceeding suddenly had to move forward.

That sequence matters. The schedule did not expire independently of Respondent's conduct. Respondent's delayed and deficient compliance consumed it. The Commission cannot first permit Respondent to use months of additional time without completing production and then invoke the passage of that same time as the reason Complainant may not obtain the evidence, examine the witnesses, or conduct the follow-up discovery necessary to present its case.

Deadlines cannot be flexible when they protect Respondent from the consequences of noncompliance and suddenly inflexible when Complainant seeks to cure that noncompliance. The

² Delay caused by conferral with Respondent.

Commission cannot allow Respondent to consume the schedule and then use the consumed schedule against Complainant. Reconsideration is required because the present result rewards the party that failed to comply, preserves the evidentiary advantage created by that failure, and imposes every resulting prejudice upon the party that obtained the discovery Orders.

When Complainant sought to reopen and extend discovery after the depositions revealed the omitted custodians and unproduced categories, the request was denied in part because Complainant had accepted the schedule and because Respondent's noncompliance had not been established. But adjudication of the motion through which Complainant was establishing that noncompliance had been deferred to permit the very depositions the Presiding Officer directed. Complainant was thereby required to prove noncompliance before the motion establishing it was decided, while the accommodations extended to Respondent continued to postpone the production.

G. Enforcement measures short of evidentiary relief have been exhausted.

Section 502.150(b)(1) authorizes the Presiding Officer, when a party fails to obey a discovery order, to direct that designated facts be taken as established as the moving party claims. Complainant does not seek dismissal or a decision by default. If complete production is not made in time for Complainant to review and use it before its opening merits brief is due on August 25, 2026, the appropriate lesser remedy is an order taking as established, for purposes of the merits determination, that Respondent assumed responsibility for the transportation of the two subject shipments from the port or point of receipt to the port or point of destination.

The July 27 Order denied Complainant's fully briefed request for relief under 46 C.F.R. § 502.150(b)(1) without addressing that request or providing any reasoned explanation for its denial. Complainant expressly requested deemed-established relief, and Respondent expressly opposed "sanctions, adverse inferences, evidentiary preclusion, deemed facts, [and] deemed findings concerning Respondent's role in the subject shipments." Respondent's Opposition, at 10. Although the Order summarily denied the RME, it never analyzed § 502.150(b), addressed the requested deemed-established relief, or explained why leaving both operative production Orders unenforced warranted no remedial consequence. Complainant therefore does not merely request reconsideration of an adverse sanctions determination; it requests reasoned disposition of a specifically presented and fully briefed form of relief the Order denied without analysis.

H. The timing of third-party subpoenas does not excuse Respondent's noncompliance.

The July 27 Order faults Complainant for not "timely requesting subpoenas for third-party documents" and returns to that point repeatedly, treating Complainant's subpoena timing as though it resolved the enforcement motion. It does not. The Order's repeated focus on third-party subpoenas also ignores the broader prejudice caused by Respondent's incomplete production. That noncompliance affected the scope and sequencing of interrogatories, requests for admission, depositions, follow-up document discovery, nonparty discovery, and preparation of the merits record. The sequence in which a party pursues the discovery tools available to it is a matter of litigation judgment, and that judgment belongs to the party litigating the case. Faulting Complainant for the timing of subpoenas it was never required to seek does not answer whether Respondent produced what it was ordered to produce. It instead substitutes the Presiding Officer's preferred sequence for Complainant's own and holds the difference against the party whose discovery was withheld rather than the party obligated to produce it.

That conclusion also accords with Federal Rule of Civil Procedure 26(d)(3), applicable under 46 C.F.R. § 502.12 to the extent consistent with the Commission's Rules. Unless the parties stipulate or the tribunal orders otherwise for convenience and in the interests of justice, "methods of discovery may be used in any sequence." Fed. R. Civ. P. 26(d)(3)(A). No Order required Complainant to pursue nonparty subpoenas before seeking enforcement of Respondent's party-production obligations.

The Order's criticism also disregards the economic reality of the procedure it would require. Commission proceedings are not limited to disputes between heavily resourced international shipping conglomerates. FormuKleen is a small business. Issuing nonparty subpoenas entails service expenses, representative's fees, negotiations over compliance, responses to objections, review of separate productions, possible motions or enforcement proceedings, and the time and expense necessary to reconcile each nonparty's records with an already incomplete production. The Commission's own discovery rule requires consideration of the parties' resources, the burden and expense of the proposed discovery, and whether the information can be obtained from a source that is more convenient, less burdensome, or less expensive. 46 C.F.R. § 502.141(e)(2)(ii)(A), (C). Here, the most direct source was Respondent, which possessed the complete internal record and was already subject to two production commands. See *Nidec Corp. v. Victor Co. of Japan*, 249 F.R.D. 575, 577 (N.D. Cal. 2007) ("There is simply no reason to burden nonparties when the documents sought are in possession of the party defendant."). Requiring Complainant to finance overlapping nonparty discovery before Respondent completed its own compelled production would shift the cost of Respondent's noncompliance to the small business that obtained the Orders and effectively require Complainant to purchase the same discovery twice before those Orders would be enforced.

The timing the Order criticizes was, in any event, shaped by the procedural course the Presiding Officer directed. Although some third parties were known earlier, Respondent's incomplete production did not disclose the complete universe of entities, custodians, communications, movements, and records involved in the two shipments. The Presiding Officer directed Complainant to take depositions precisely to develop that record-to identify the participants, determine what movements occurred, establish what communications and records existed, and create a "really clear record" for renewed enforcement and possible sanctions. Complainant reasonably pursued compliance with the existing production Orders and completed the directed depositions before incurring the expense of drafting and serving third-party subpoenas whose proper recipients and subjects were still being developed. The Order now faults Complainant for not pursuing earlier the discovery that the directed depositions were intended to make specific.

The reproach is also unfair on this record because Complainant had already spent more than six months pursuing this discovery by the time of the July 27 Order. The documented conferral began no later than January 11, 2026, continued through repeated written demands, motion practice against Respondent's original counsel, the April 1 production Order, Respondent's change of counsel, further conferrals, enforcement proceedings, the June 4 status conference, and the directed depositions. That period itself understates the prejudice. Had Respondent provided complete and compliant discovery when its responses were originally due, Complainant would not have been required to spend the preceding months identifying omissions, pursuing supplementation, and preparing the dispute that ultimately required formal conferral and motion practice. Complainant did not spend that period idle. It spent it pursuing production Respondent was repeatedly required, but failed, to complete. Had Complainant not been required to expend more than six months litigating Respondent's continuing noncompliance, it

would have had additional time to pursue whatever nonparty discovery it considered appropriate. The Order penalizes Complainant for delay produced by Respondent's noncompliance and then cites that same delay as a reason to leave the noncompliance unremedied. That reasoning is circular and rewards the party responsible for the incomplete record at the expense of the party required to litigate over it.

More fundamentally, a third-party subpoena is not a substitute for Respondent's compliance. RFP Nos. 4 and 7 ran against Respondent. The April 1 and June 5 Orders required Respondent to produce responsive communications and records within its possession, custody, or control. A subpoena to a trucker, terminal, carrier, or warehouse could reach only the subset of records that particular nonparty retained. It could not produce Respondent's internal communications directing or documenting the pull, hold, routing, delivery, release, and payment decisions; Respondent's internal accounting records, approvals, ledgers, and proofs of advancement; the complete contents and organization of Respondent's Outlook and Magaya repositories; or evidence establishing what Respondent searched and whether its sworn search description was accurate. Even where a nonparty retained copies of communications received from Respondent, those copies would not establish that Respondent had searched and produced its own complete record. The Order therefore treats mechanisms reaching materially different evidence as interchangeable and uses that false equivalence to excuse the party subject to the production Orders. Whatever additional nonparty discovery Complainant did or did not pursue does not answer the question presented by the enforcement motion: whether Respondent produced what the April 1 and June 5 Orders required. It did not.

14. THE JULY 27 ORDER CONTAINS SEPARATE, REVIEWABLE ERRORS

1. It did not decide whether TSS complied with the June 5 command requiring all third-party communications for the two shipments.
2. It treated an asserted misunderstanding as a substitute for compliance even though two successive sets of counsel handled the dispute and no uncertainty survived the June 5 Order.
3. It supplied semantic, Qichen-redundancy, and search-completeness rationales Respondent never asserted, treated those unasserted rationales as reasons Complainant's evidentiary showing failed, and denied enforcement on grounds Complainant had no notice or opportunity to address.
4. It used the historical-shipment issue to erase the separate and unresolved defect concerning custodians, third-party addresses, repositories, and search terms for the two subject shipments.
5. It converted the burden to show noncompliance into an impossible burden to prove the contents and ultimate value of evidence TSS withheld.
6. It disregarded the June 4 observations and directives and the deposition record the Presiding Officer specifically required Complainant to build for renewed enforcement and possible sanctions.
7. It quoted only the words "everything was reviewed" from a sentence that continued "and nothing, nobody searched anything," and used the incomplete fragment as corroboration of the Declaration.
8. It relied on later comments about snooping and digging to reinterpret direct answers given before those comments and repeated afterward.
9. It relied on a Qichen search that the Villena Declaration does not list and assumed search equivalence without evidence about TSS's Magaya or Outlook configuration.

10. It failed to address TSS's admission that it excluded or deprioritized responsive third-party emails when FormuKleen was copied.
11. It treated the search declaration as proof of production even though the Declaration omitted custodians, contacts, and repositories identified by TSS's own witnesses.
12. It did not separately analyze or find compliance with RFP No. 7.
13. It revisited materiality after relevance had been decided and used the uncertainty caused by nonproduction as the reason not to enforce.
14. It found the existence and materiality of additional records "unclear" despite Respondent's verified operational admissions and Del Monte's testimony that the emails exist, are accessible, and were never produced.
15. It materially misquoted the statutory element it treated as dispositive by placing "point of origin" in quotation marks and attributing the altered language to the statute, which instead says "point of receipt"; the April 1 Order and the authority quoted in the same sentence also use "point of receipt."
16. It materially truncated the Complaint's allegation concerning Respondent's capacity, quoting only "freight forwarder and customs broker" and omitting, without indication, the Complaint's express allegation that Respondent was engaged as FormuKleen's Ocean Transportation Intermediary-the statutory category that includes a non-vessel-operating common carrier. 46 U.S.C. § 40102(20).
17. It found the existence of additional responsive records "unclear" although Respondent's own Opposition attached documents from Thunder Container Transport, Inc., a drayage provider that appears nowhere in the Villena Declaration and whose communications appear nowhere in Respondent's designated third-party-communications productions.
18. It left both operative production Orders unenforced without either directing complete production in time for Complainant to review and use it before its opening merits brief is due or ordering, under 46 C.F.R. § 502.150(b)(1), that it be taken as established that Respondent assumed responsibility for the transportation of the two subject shipments from the port or point of receipt to the port or point of destination.
19. It summarily denied Complainant's fully briefed request under 46 C.F.R. § 502.150(b)(1) without analyzing the requested deemed-established relief or explaining why no remedial consequence followed from leaving both production Orders unenforced.

Absent reconsideration or immediate Commission review, Complainant expressly preserves all objections and all available avenues of review concerning any initial or final decision entered on a record rendered incomplete by Respondent's continued noncompliance with the Commission's discovery Orders.

15. RECONSIDERATION AND ENFORCEMENT ARE REQUIRED

The record permits one result. RFP Nos. 4 and 7 were litigated. The April 1 Order compelled them. The May 21 Order identified continuing deficiencies. The June 4 conference confirmed that the production did not make sense, that TSS controlled the search systems, and that a clear deposition record was required. The June 5 Order commanded the third-party communications again. Complainant built the record the Presiding Officer requested. TSS still did not identify a complete production.

The July 27 Order did not find compliance. It replaced compliance with explanations, search assumptions, and a materiality prediction. It should be reconsidered now so the merits can be briefed on the record the Commission already held Complainant was entitled to receive.

16. REQUESTED RELIEF ON RECONSIDERATION

Complainant respectfully requests that the Presiding Officer:

1. RECONSIDER the July 27 Order.
2. FIND that Respondent has not complied with the April 1 Order as to RFP Nos. 4 and 7 or with the June 5 Order requiring production of all third-party communications related to the two subject shipments.
3. ENFORCE the April 1 and June 5 Orders by directing Respondent to produce the responsive third-party communications and RFP No. 7 records by a date certain that allows Complainant to review and use the production before its opening merits brief is due on August 25, 2026.
4. ADJUST the August 25, 2026 merits-briefing deadline as necessary to permit Complainant to review and use the compelled production.
5. IN THE ALTERNATIVE, IF COMPLETE PRODUCTION IS NOT MADE IN TIME FOR COMPLAINANT TO REVIEW AND USE IT BEFORE ITS OPENING MERITS BRIEF IS DUE ON AUGUST 25, 2026, WHETHER BECAUSE THE PRESIDING OFFICER DECLINES TO ENFORCE THE COMMISSION'S ORDERS OR BECAUSE RESPONDENT DOES NOT COMPLY WITH THEM, ORDER, under 46 C.F.R. § 502.150(b)(1), that it be taken as established, for purposes of the merits determination, that Respondent assumed responsibility for the transportation of the two subject shipments from the port or point of receipt to the port or point of destination, and permit Complainant to rely on that established fact in its opening brief.

17. IN THE ALTERNATIVE, LEAVE TO APPEAL IS NECESSARY UNDER 46 C.F.R. § 502.221(a)

A. Complainant is being required to brief the merits while two production Orders remain unenforced.

Complainant is now required to prepare and file its opening brief on the merits although Respondent has not complied with either of two Commission production commands. The Commission compelled production on April 1, 2026. After Respondent served a facially deficient supplemental production, the Commission stated again on June 5, 2026 that Respondent was still required to produce all third-party communications for the two subject shipments. Neither command has been satisfied and neither has been vacated.

The merits brief is Complainant's only opportunity to explain why the record establishes liability. There are no live witnesses at that stage, no later evidentiary proceeding, and no mechanism for revisiting positions taken in the brief once the compelled discovery is finally produced. Complainant must therefore analyze an evidentiary record that the Commission has twice held should contain additional compelled evidence, evaluate deposition testimony without the contemporaneous communications that would corroborate or contradict it, and respond to Respondent's factual assertions without knowing what remains unproduced.

The prejudice is not confined to briefing. Without the compelled communications, Complainant could not determine which additional third parties warranted subpoenas, which witnesses warranted deposition or recall, or whether further written discovery was necessary. Those opportunities had largely passed by the time the July 27 Order denied enforcement. Respondent, meanwhile, received 115 unique calendar days of additional time applicable exclusively to its own obligations, and 130 days have now elapsed since the April 1 Order with the compelled production still incomplete 116 days past the original compliance deadline. Complainant received five calendar days of timing relief applicable exclusively to its own filings across the entire proceeding, and its July 9 and July 15 requests for the discovery necessary to cure the resulting prejudice were denied.

The procedural course imposed over the past several months, repeated conferral, successive enforcement motions, additional depositions, and amended briefing, has had the practical effect of walking back the April 1 and June 5 Orders without formally vacating either Order. The Orders remain nominally intact, but Respondent is relieved of the obligation to obey them while Complainant is required to litigate compliance indefinitely.

The consequence is that the party that violated the production Orders proceeds to merits briefing on the incomplete record its own noncompliance created, while the party that obtained those Orders bears the expense, the evidentiary disadvantage, and the lost discovery opportunities. That prejudice is avoidable. The Commission need only require Respondent to comply with the Orders it has already entered before Complainant is required to submit its merits presentation.

B. Immediate review will prevent substantial delay and expense.

If the Commission waits until after the initial decision and later concludes that the April 1 and June 5 Orders should have been enforced, the proceeding may have to return for production, document review, supplemental testimony, new findings, and renewed briefing. Immediate review of this narrow, fully developed enforcement issue will avoid that duplication.

C. Immediate review is necessary to prevent detriment to the public interest by preserving the force of Commission discovery orders.

This is not a routine dispute over a marginal search term. The Commission adjudicated relevance, issued a production Order, recognized continuing deficiencies, issued a second production command for the core communications, required additional depositions to create an enforcement record, and then denied enforcement without finding obedience. Immediate review is warranted to determine whether an express Commission discovery Order may be left unenforced because the withheld evidence cannot be evaluated and the Presiding Officer predicts that the existing evidence may be enough. Because certification of an interlocutory appeal does not itself stay the proceeding, Complainant is filing a separate motion to stay the August 25, 2026 opening-merits-brief deadline and further merits briefing pending disposition of this combined motion and, if leave is granted, pending the Commission's disposition of the certified appeal. 46 C.F.R. § 502.221(d).

18. INTERLOCUTORY APPEAL

Question Presented

Whether the July 27, 2026 Order should be reversed where the April 1 Order compelled RFP Nos. 4 and 7; the June 5 Order again required all third-party communications for the two subject shipments; the Presiding Officer had already recognized that extensive communications should exist, that

TSS controlled the Magaya search structure, and that vague targeted-search claims were insufficient; Complainant then developed the deposition record the Presiding Officer required; and the July 27 Order denied enforcement without finding compliance, supplied semantic, Qichen-redundancy, and search-completeness rationales Respondent never advanced and Complainant had no opportunity to address, relied on factual premises contradicted by the record, refused enforcement based on a prediction about the value of evidence TSS withheld, summarily denied Complainant's fully briefed request under 46 C.F.R. § 502.150(b)(1) without analyzing that relief, materially misquoted the statutory element governing the unresolved merits issue, and truncated the Complaint's allegation of the capacity in which Respondent was engaged.

Statement of the Appeal

Complainant incorporates Sections 2 through 13 as the record and argument supporting this appeal, and the separate errors indexed in Section 14. The Commission should reverse for the following independent reasons.

1. The July 27 Order did not decide compliance with the operative production commands.

The Order never found that TSS produced all third-party communications required by June 5 or all RFP No. 7 records compelled on April 1. Its conditional statements—"to the extent Respondent failed" and "if any responsive documents were not produced"-acknowledge possible noncompliance and then deny relief based on predicted evidentiary value. (July 27 Order, at 5-6). That does not answer whether the Orders were obeyed.

2. The explanation that TSS failed to appreciate the scope is contradicted by the representation and Order history.

Raab litigated the objections. Spector Rubin expressly stated on April 10 that it understood the Order to contemplate all shipment records and obtained time to make compliance complete and accurate. The May 21 Order stated that TSS all but admitted deficient searches and raised concern about gamesmanship. No claimed confusion survived the June 5 command limited to the two shipments.

3. The Order denied enforcement on three rationales Respondent never advanced and Complainant had no opportunity to address.

Respondent opposed enforcement by arguing that Del Monte was an operational employee who did not coordinate litigation discovery and that selected excerpts from his testimony did not establish unreasonable searches. Respondent did not argue that Complainant and Del Monte understood the word "search" differently, characterize his five denials as a vocabulary problem, or ask the Presiding Officer to disregard them on that basis. Respondent's Opposition, at 5-7. The Order introduced that explanation itself and used it to reject Complainant's evidentiary showing.

The same is true of the Order's Qichen-redundancy and search-completeness rationales. Respondent did not identify Qichen or any other specific entity or search term and did not argue that the searches described in the Villena Declaration captured substantially all material third-party documents. It argued instead that few responsive communications existed because its operational role was limited. Respondent's Opposition, at 3-4. The Order thus supplied three grounds that the party defending the search never asserted.

Adjudicators ordinarily rely on the parties to frame the issues and serve as neutral arbiters of the matters presented. *Greenlaw v. United States*, 554 U.S. 237, 243 (2008); *United States v. Sineneng-Smith*, 590 U.S. 371, 375–76, 379–80 (2020). Although that principle is flexible and those decisions arose in Article III courts, the error here is concrete: the Order did not resolve an interpretation disputed by the parties. It supplied a defense neither Respondent nor any witness expressed, treated it as the reason Complainant’s showing failed, and denied enforcement without giving Complainant notice or an opportunity to address it. That result also cannot be reconciled with the reasoned decision making requirement discussed in *Evergreen Shipping Agency (America) Corp. v. Federal Maritime Commission*, 106 F.4th 1113, 1117–18 (D.C. Cir. 2024). Respondent’s unrepresented status permitted liberal construction of arguments it actually presented; it did not authorize the Presiding Officer to create factual and evidentiary defenses Respondent never advanced.

4. The denial rests on material factual errors.

The Order used an incomplete clause from Del Monte’s answer, reversed the testimony’s chronology, relied on a Qichen search absent from the Declaration, assumed search equivalence without system evidence, ignored omitted custodians, and failed to address TSS’s admission that it excluded responsive copied emails. It also treated the existence of additional records as unclear although Respondent’s own Opposition attached documents from a drayage provider absent from the Declaration and whose communications were absent from Respondent’s designated third-party-communications productions. Each error materially supports the denial; together they remove its factual foundation.

5. The Order disregarded the exact record the Presiding Officer required Complainant to build.

The Presiding Officer directed depositions so Complainant could make the missing documents and search defects specific enough for enforcement and sanctions. Complainant did so. The July 27 Order did not reconcile its denial with that sworn record or with the June 4 observations and directives showing that communications had to exist and that TSS controlled the search structure.

6. The materiality ruling is legally and logically incompatible with the prior Orders.

The Commission already decided discoverability. The July 27 Order did not modify or vacate the April 1 or June 5 Order. It could not deny enforcement by guessing that unseen evidence might be cumulative. The missing operational and payment records bear directly on the assumption-of-responsibility issue the Order identifies as unresolved.

7. The Order denied the fully briefed § 502.150(b)(1) request without reasoned consideration.

Complainant expressly requested deemed-established relief under § 502.150(b)(1), and Respondent expressly opposed that precise relief. Respondent’s Opposition, at 10. The July 27 Order summarily denied the RME but never analyzed § 502.150(b), addressed the requested deemed-established fact, or explained why no remedial consequence was warranted if production remained incomplete. The Commission should remand with instructions to decide the expressly presented request under the governing rule.

8. The Order materially misquoted the governing statutory element.

Section 40102(7)(A)(ii) asks whether Respondent assumed responsibility for transportation “from the port or point of receipt to the port or point of destination.” The July 27 Order placed “point of origin” inside quotation marks and attributed the altered language to the statute, although the April 1 Order and

the *Ali-Grimaldi* authority quoted in the same sentence use “point of receipt.” Because the Order’s materiality analysis turned on what remained unresolved under that element, the misquotation is not immaterial: it placed Respondent’s admitted port-to-destination conduct outside the inquiry and thereby changed the Order’s assessment of whether the withheld operational communications would materially advance Complainant’s case. Section 11 sets out the full analysis.

9. The Order materially truncated the Complaint's allegation concerning Respondent's capacity.

The Complaint alleges that FormuKleen engaged Respondent to act as its "Ocean Transportation Intermediary ('OTI'), primarily in the capacity of a freight forwarder and customs broker." Complaint, at 3. The July 27 Order began its quotation at "freight forwarder," omitting the allegation that Respondent was engaged as an OTI and not indicating the omission. An ocean transportation intermediary is defined as an ocean freight forwarder or a non-vessel-operating common carrier. 46 U.S.C. § 40102(20). The omission removed the pleaded statutory category that includes the status the Order treated as unresolved.

Relief Requested on Appeal

Complainant requests that the Commission reverse the July 27 Order to the extent it denied the Amended Renewed Motion to Enforce and remand with instructions to:

- (1) enforce the April 1 and June 5 production commands by a date certain that allows Complainant to review and use the production before its opening merits brief is due;
- (2) if complete production is not made in time for Complainant to review and use it before its opening merits brief is due, whether because the Presiding Officer declines to enforce the Commission's Orders or because Respondent does not comply with them, order under 46 C.F.R. § 502.150(b)(1) that it be taken as established, for purposes of the merits determination, that Respondent assumed responsibility for the transportation of the two subject shipments from the port or point of receipt to the port or point of destination, and permit Complainant to rely on that established fact in its opening brief; and
- (3) adjust the remaining deadlines only as necessary to permit Complainant to review and use the compelled production.

CONCLUSION

Respondent litigated this discovery dispute through not one, but two law firms. The Motion to Compel was granted in part. Respondent was ordered to produce the documents, twice. Respondent has not complied. The Commission has thus far declined to enforce two Orders requiring that production and, in doing so, has transformed what should have been straightforward enforcement into a months-long, prejudicial ordeal for the Complainant that prevailed on the merits of the discovery dispute.

That result does not serve justice.

Respectfully submitted,

Sara Dandan

Admitted to practice before the Commission pursuant to 46 C.F.R. § 502.27

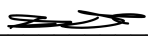
FourOneOne LLC

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Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature: _____

Date: 08/09/2026

CERTIFICATE OF SERVICE

I certify that on August 9, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Ricky Villena

Top Shipping Systems, Corp.

12480 NW 25th Street, Ste. 100

Miami, Florida 33182

ricky.villena@tsscorp.us

Sara Dandan



1 FEDERAL MARITIME COMMISSION

2 WASHINGTON, DC.

3 FORMAL DOCKET NO. 25-08

4
5 FormuKleen, INC.

6 (Complainant)

7
8 vs.

9
10 Top Shipping Systems, Corp.

11 (Respondent)

12
13
14 DEPOSITION OF RICKY VILLENA

15
16
17
18 DATE: Thursday, July 2, 2026

19 TIME: 10:00 a.m.

20 LOCATION: Videoconference

21
22
23
24
25 BY: Michael Marciniak, CER

1 Q. Were searches run for the word "loan?"

2 A. Don't recall.

3 Q. Were searches run for the word "debt?"

4 A. Debt?

5 Q. Yeah.

6 A. No. Don't recall.

7 Q. Were searches run for the word "payment?"

8 A. Yes.

9 Q. Does TSS contend that all responsive third-party
10 communications were produced?

11 A. They'd like to believe so, yes.

12 Q. Does TSS contend all responsive emails concerning
13 CHSU were produced?

14 A. Yes.

15 Q. Does TSS contend all responsive emails concerning
16 BSIU --

17 Q. Yeah.

18 A. -- Were produced? To the best of my knowledge.

19 Q. Does TSS contend all responsive communications with
20 SeaBlue were produced?

21 A. Yes, to the best of my knowledge.

22 Q. Does TSS contend all responsive communications with
23 DHY were produced?

24 A. Yes, to the best of my knowledge.

25 Q. Does TSS contend all responsive communications with

1 communications, were all third-party communications with
2 DHY produced; Yes or no?

3 A. Yes.

4 Q. If TSS communicated with Dolphin about these
5 containers, what did TSS communicate with Dolphin about?

6 A. Again, for the freight release, because they were,
7 they were the MVO and destination agent releasing the
8 container.

9 Q. Were all communications with Dolphin produced?

10 A. All the communications that were third-party that
11 we were find, that we were able to find, we were forwarded.

12 Q. So is your answer yes or no?

13 A. Yes.

14 Q. Did TSS communicate with the trucker about where to
15 pick up or deliver CHSU?

16 A. The delivery order that we originally talked about.

17 Q. Well, I'm asking about communication. Did the TSS
18 communicate with the trucker about where to pick up or
19 deliver CHSU?

20 A. The delivery order has all the information when
21 they emailed them to them.

22 Q. Did TSS communicate with the trucker about where to
23 pick up or deliver CHSU? It's a yes or a no.

24 A. Yes.

25 Q. Were all those communications produced?

1 A. Yes.

2 Q. Did TSS communicate with the trucker about where to
3 pick up or deliver BSIU?

4 A. Yes, in the delivery order.

5 Q. Were all of those communications produced?

6 A. Yes.

7 Q. Did TSS communicate with any carrier or terminal by
8 email, portal message, online request, upload, submission,
9 payment, status inquiry, release inquiry, or other written
10 method concerning CHSU? It's a yes or no.

11 A. For the drayage to be able to remove the, the
12 container, yes.

13 Q. So the answer is yes to the whole question?

14 A. Let me see the whole question again.

15 Q. Did TSS communicate with any carrier or terminal by
16 email, portal message, online request, upload, submission,
17 payment, status inquiry, release inquiry, or other written
18 method concerning CHSU?

19 A. For the post arrival, yes.

20 Q. That's not a, you're not, again, did TSS
21 communicate with any carrier or terminal by email, portal
22 message, online request, upload, submission, payment,
23 status inquiry, release inquiry, or other written method
24 concerning CHS view? Yes or no?

25 A. Yes, to pull the container out.

1 Q. But you also testified, I just want to re-clarify,
2 that you did not supervise the employees' searches. You
3 just asked them, but you didn't, you didn't supervise or
4 certify in any way that they had actually searched for and
5 given you what you had asked for, correct?

6 A. I, I did. I went to each individual and, and I
7 asked him to search next to me, how he was searching, and I
8 told him to look at every different type of subject to make
9 sure that we can capture.

10 Q. Oh, so, so now you, so now you were sitting next to
11 them and you watched, right?

12 A. When I first saw it, when I first asked for them,
13 yeah.

14 Q. Okay.

15 A. Not the whole time, but when I first started asking
16 just to make sure that they do it right.

17 Q. Is TSS's position that no such communications were
18 necessary?

19 A. What do you mean?

20 Q. Is TSS's position that no such communications were
21 necessary?

22 A. Were necessary in what way? I'm not understanding
23 your question.

24 Q. I, I'm asking you is it your position that no such
25 communications were necessary?

1 STATE OF ILLINOIS)

2) SS

3 COUNTY OF COOK)

4
5 I, Michael Marciniak, CER, Notary Public,
6 electronic reporter doing business in the State of
7 Illinois; reported the proceedings that were held on date,
8 time, and place set out on the title page hereof; and that
9 the foregoing is a true and correct transcript of report of
10 proceedings so taken aforesaid.

11 I further certify that I am not related to any of the
12 parties, and I have no financial interest in the outcome of
13 this matter.

14
15 Michael Marciniak

16 Michael R. Marciniak

17 Certified Electronic Reporter, CER-2316

18 Notary Public
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25